ROSSLYN
INN & SUITES

February 1 2024

Clinic Solutions Inc.
o/a Rosslyn Veterinary Clinic
1005 Tudor Glen Place
St Albert, Alberta
T8N 3V4

ATTN: Vivien Bailey-Marriott

RE: Tenancy Rosslyn Shopping Centre
13540 - 97 Street, Edmonton Alberta

Dear Mrs. Bailey-marriott:

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Minimum rent	$ 2,833.24
Budgeted operating cost @ 2.90%	940.30
Budgeted Property Taxes	543.75
Pylon Sign Rental	190.00
Sub-Total	4507.29
GST 5%	225.36
NEW MONTHLY REMITTANCE	**$ 4,732.66**

Effective March 1 2024, We will be withdrawing your new Monthly Remittance via EFT for the amount of **$4732.66**

Yours sincerely,

Kevin Stead
General Manager

ROSSLYN INN & SUITES LTD.

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TOLL FREE 1 877 785 7005

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Dear Mrs. Vivien Bailey-Marriott

Attached are the Summary of Common Area Maintenance for Calendar year 2023 and the Estimated 2024 budgeted amount allocated monthly for you Tenancy. Please remit your February rent as shown below to bring you account current.

FEBRUARY 1 2024 RENT

Budgeted Cost First 1 Months 2024	$ 4,732.66
LESS/ADD Balance Owing (CREDIT) 2023	$ (1,134.12)
LESS Rent paid January 2024	$ (4,967.16)
Budgeted balance due First 1 Month 2024	$ (1,368.62)
February 1 2024 Monthly Budgeted Cost	$ 4,732.66
Balance Due as of February 1 2024 >>>>>>>>>	**$ 3,364.04**

If you have any questions, please contact Kevin Stead General Manager @ 780.229.0850 or Dougal Duncan Chief Accountant @ 780.229.0860 we will do our best to clear up any questions you may have.

Thank you.

Yours sincerely,

Kevin Stead
General Manager

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CLINIC SOLUTIONS INC.
SUMMARY OF COMMON AREA MAINTAINENCE
FOR CALENDER YEAR ENDED DECEMBER 31 2023

Lease Term: From May 1, 2019 To April 30, 2024
Cost Period: From January 1, 2023 To December 31, 2023

TOTAL AREA OF SHOPPING COMPLEX -	53297 Sq.ft
TENENT AREA OCCUPIED FOR COMPLEX	**1545.4** Sq.ft.
TENENTS PROPORTIONATE SHARE	**2.90%**

ACTUAL RECOVERABLE OPERATION COST(JANUARY 1 2023 - DECEMBER 31 2023)

General Repairs and Maintenance	$ 7,373.71	
Parking lot Repairs and maintenance	$ 16,145.91	
Labour Cost Security & Maintenance	$ 142,273.86	
Landscape and Maintenance	$ 9,921.00	
Snow Removal and Cleaning	$ 32,010.00	
Security Lighting utilities and repairs	$ 14,614.51.	
Insurance	$ 41,393.76	
Sub-Total	$ 263,732.75	$ 263,732.75
Administration Fee 15%	$ 39,559.91	$ 39,559.91
TOTAL		**$ 303,292.66**

PROPERTY TAXES (All Tenants: Applicable area = 43562.88 sq.ft)	$ 181,128.34	
(All Tenants: Except Building Two)	$ -	
TOTAL PROPERTY TAXES		**$ 181,128.34**
HVAC MAINTENANCE (All Tenants: Applicable area = 38961.80 sq.ft)	8,562.51	
Administration Fee 15% (All Tenants: Government separate Billing)	1284.38	
TOTAL HVAC		**$ 9,846.89**
WASTE DISPOSAL (All Tenants: Applicable area = 53297.04 sq.ft)	13,567.19	
Administration Fee 15%	2035.08	
TOTAL WASTE DISPOSAL;		**$ 15,602.26**

CAM AMOUNT DUE (303292.66 x .0290)+(181128.34*0.0355)+(9846.89 x .0290)+(15602.26 X .0290) = $ 15,963.57

RECONCILIATION RENT & COMMON AREA MAINTAINENCE

Common Area Maintenance Due (From Above)	$ 15,963.57
Minimum Rent: ($2703.75 x 4 2833.24 x 8)	$ 33,480.92
Pylon Sign Rent: ($200 X 12)	$ 2,400.00
Extra Repair Requested By Tenants	$ 1,126.48
Sub-Total	$ 52,970.97
GST @ 5%	$ 2,648.55
Sub-Total	$ 55,619.52
Total Payment made in cost Period by Tenant	$ 56,753.64
Sub-Total	$ (1,134.12)
Balance forward from previous Year	$ -
BALANCE OWING (CREDIT)	**$ (1,134.12)**

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ROSSLYN SHOPPING CENTRE
Budgeted Operating Costs
January 1, 2024 to December 31, 2024

Area:	Building 1	43562.89	
	Building 2	9734.16	
	Liquor Store	4915.29	
	Hotel	65604.39	
	Total Area	**123816.73**	**100%**

Occupancy Costs Total Property:

General Repairs and Maintenance	$	40,000.00
Parking lot Repairs and Maintenance	$	50,000.00
Labour cost Security	$	145,000.00
Labour cost Maintenance	$	99,500.00
Landscape Maintenance	$	30,000.00
Snow Removal and Cleaning	$	76,000.00
Security Lighting utilities and repairs	$	225,000.00
Waste Disposal	$	37,000.00
Insurance	$	175,000.00
Hvac Maintenance	$	30,000.00
Sub-Total	$	907,500.00
15% Administration Fee	$	136,125.00
Total Estimated Property Cost	**$**	**1,043,625.00**

Occupancy Costs for Building 1 and 2

General Repairs and Maintenance		$	17,200.00
Parking lot Repairs and maintenance		$	21,500.00
Insurance		$	75,250.00
Landscape and Maintenance		$	12,900.00
Snow Removal and Cleaning		$	32,680.00
Security Lighting:	Utilities	$	20,000.00
	Repairs	$	15,000.00
Labour Cost:	Security	$	100,000.00
	Maintenance	$	15,000.00
Hvac Maintenance		$	12,900.00
Waste Disposal		$	15,910.00
Sub-Total		**$**	**338,340.00**
15% Administration Fee		$	50,751.00
Total Building 1 and 2 Cost @ 43%		**$**	**389,091.00**

Total Area Building 1 and 2 Cost (53297/123816.73) **53297 SQ.FT** **43%**

Estimated Property Taxes Building 1	$ 274,437	$ 181,128.31	**<<<@66%**
Estimated Property Taxes Building 2	$ 46,535.00	$ 46,535.00	**<<<@100%**
		$ 227,663.31	

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TABLE OF CONTENTS

SECTION 1 - INTENT OF LEASE 1

SECTION 2 - THE SHOPPING CENTRE 1
2.01 THE SHOPPING CENTRE 1

SECTION 3 - LEASED PREMISES AND COMMON AREAS 2
3.01 LEASED PREMISES 2
3.02 COMMON AREAS AND FACILITIES 2
(a) Additions, etc. to Common Areas and Facilities 2
(b) Obstruction of Common Areas 2
(c) Parking Lot 2
(d) Tenant Parking 2
3.03 STANDARD OF MEASUREMENT 3

SECTION 4 - TERM 3
4.01 TERM 3
4.02 FIXTURING PERIOD 3
4.03 OBLIGATION TO PAY OCCUPANCY COSTS 3
4.04 COMMENCEMENT OF TERM 3
4.05 OBLIGATION TO PAY MINIMUM RENT 3

SECTION 5 - RENT 3
5.01 RENT 3
(a) Minimum Rent 3
5.02 BASIS OF MINIMUM RENT 4
5.03 PAYMENT OF MINIMUM RENT 4
(a) Payment of Minimum Rent 4
(b) Post-Dated Cheques 4
5.04 RENT FOR PORTION OF MONTH OR YEAR 4
5.05 SECURITY DEPOSIT 4
5.06 GOODS AND SERVICES TAX 5

SECTION 6 - OCCUPANCY COSTS AND OTHER CHARGES 5
6.01 OCCUPANCY COSTS 5
(a) Occupancy Costs Exclusive to Tenant 5
(b) Occupancy Costs Not Exclusive to Tenant 5
(c) Occupancy Costs Relating to Common Areas 5
6.02 ESTIMATED OCCUPANCY COSTS 5
6.03 OCCUPANCY COSTS DEFINED 5
6.04 TENANT'S BUSINESS TAX 6
6.05 ADDITIONAL EXPENSES CAUSED BY TENANT 6
6.06 OCCUPANCY COSTS FOR PORTION OF MONTH OR YEAR 7
6.07 SERVICES TO BE PERFORMED BY LANDLORD 7
6.08 STATEMENTS OF OCCUPANCY COSTS AND ADJUSTMENT OF MONTHLY PAYMENTS 7
6.09 LANDLORD'S RECORDS 7

SECTION 7 - PREPARATION OF LEASED PREMISES, REPAIRS AND MAINTENANCE 8
7.01 PREPARATION OF LEASED PREMISES 8
(a) Preparation of Leased Premises by Landlord 8
(b) Preparation of Leased Premises by Tenant 8
7.02 EXAMINATION AND ACCEPTANCE 8
7.03 INSTALLATION AND REMOVAL OF TRADE FIXTURES 8
7.04 TENANT'S ALTERATIONS 8
7.05 TENANT'S REPAIRS 9
7.06 NOTICE OF DEFECTS 9
7.07 CLEANLINESS 9
7.08 LANDLORD MAY INSPECT 10
7.09 LANDLORD MAY REPAIR 10

7.10 CONDITION OF PREMISES ON TERMINATION 10
7.11 LANDLORD'S REPAIRS 10

SECTION 8 - CONDUCT OF BUSINESS, ADVERTISING AND PROMOTION 10
8.01 USE OF PREMISES 10
(a) Use of Premises 10
(b) Firm Name and Style 10
(c) Character of Business 10
(d) Assignment 12
8.02 CONTINUED OCCUPANCY BY TENANT 12
8.03 TENANT'S ADVERTISING 13
8.04 NO AUCTION OR BANKRUPTCY SALE 13
8.05 NUISANCE 13
8.06 COMPETITION 13
8.07 ENVIRONMENTAL ISSUES 13

SECTION 9 - DEFAULT AND TERMINATION 14
9.01 DEFAULT IN PAYMENT OF RENT 14
9.02 REASONS FOR TERMINATION 14
9.03 SURRENDER OF PREMISES ON TERMINATION 15
9.04 INTEREST 16
9.05 APPLICATION OF MONIES 16
9.06 LANDLORD'S RIGHTS ON RE-ENTRY 16
9.07 LANDLORD'S RIGHTS ON TERMINATION 16
9.08 EXEMPTION RE DISTRESS 16
9.09 FORBEARANCE 16
9.10 OVERHOLDING 16
9.11 INDEMNITY BY TENANT 17
9.12 LEGAL COSTS 17
9.13 CUMULATIVE REMEDIES 17
9.14 BANKRUPTCY 17

SECTION 10 - DAMAGE, DESTRUCTION, EXPROPRIATION, INSURANCE LIMITS OF LANDLORD'S LIABILITY 17
10.01 DESTRUCTION OF LEASED PREMISES BY FIRE 17
(a) Destruction of Leased Premises 17
(b) Tenant's Election 17
(c) Whole of Premises Unfit for Occupancy 17
(d) Part of Premises Unfit for Occupancy 17
10.02 DESTRUCTION OF SHOPPING CENTRE 18
10.03 EXPROPRIATION 18
10.04 INSURANCE 18
(a) Landlord's Insurance 18
(b) Tenant's Insurance 19
(c) Landlord's Responsibility 19

SECTION 11 - MISCELLANEOUS PROVISIONS 20
11.01 QUIET POSSESSION 20
11.02 SIGN RENTAL 20
11.03 PYLON SIGN 20
11.04 PLACE OF PAYMENTS 20
11.05 GOVERNMENT REGULATIONS 20
11.06 FURTHER REGULATIONS 21
(a) No Dangerous Articles 21
11.07 FINANCING OF THE SHOPPING CENTRE 21
11.08 VERIFICATION STATEMENTS 21
11.09 CAVEAT 21
11.10 TIME OF ESSENCE 21
11.11 MODIFICATION 21
11.12 ENTIRE AGREEMENT 22

11.13 **LANDLORD AND TENANT RELATIONSHIPS** 22
11.14 **NOTICE OF LETTING AND INSPECTION BY PROSPECTIVE TENANTS** 22
11.15 **RULES AND REGULATIONS** 22
11.16 **NOTICES** 22
11.17 **AGENT** 23
11.18 **CAPTIONS** 23
11.19 **GRAMMATICAL** 23
11.20 **NATURE OF CHARGES IN LEASE** 23
11.21 **TERMS, COVENANTS AND CONDITIONS INVALID** 23
11.22 **STRIKES, LOCK-OUTS, ETC.** 23
11.23 **JOINT AND SEVERAL** 23
11.24 **LANDLORD'S PERFORMANCE ON TENANT'S BEHALF** 23
11.25 **SALE OR ASSIGNMENT OF SHOPPING CENTRE** 24
11.26 **CONFIDENTIAL NATURE OF LEASE** 24
11.27 **SCHEDULES** 24
11.28 **SUCCESSORS AND ASSIGNS** 24

SCHEDULES

Schedule "A" - Plan Outlining Shopping Centre
Schedule "B" - Plan Outlining Leased Premises
Schedule "C" - Tenant's Estoppel Certificate Referred to in Paragraph 11.08 of the Lease
Schedule "D" - Rules and Regulations Referred to in Paragraph 11.15 of the Lease

THIS LEASE made this 1st day of May 2019.

BETWEEN:

ROSSLYN INN & SUITES LTD.
a body corporate with head office
at the City of Edmonton, in the Province of Alberta,
(hereinafter called the "Landlord")

OF THE FIRST PART

- and -

CLINIC SOLUTIONS INC.
of the City of Edmonton, in the Province of Alberta,
(hereinafter called the "Tenant")

OF THE SECOND PART

In consideration of the mutual covenants and agreements herein contained, the parties hereto agree as follows:

SECTION 1 - INTENT OF LEASE

1.01 INTENT OF LEASE

It is the intent of this Lease and agreed by both parties hereto that all and every cost, expense, rate, tax or charge in any way related to the leased premises and to the Tenant's share of occupancy costs (as defined in Section 6) will be borne by the Tenant without any variation, set-off, or deduction whatsoever, excepting only:

(a) Any income tax or taxes, other than business tax, imposed or levied by any authority whatever on the income received by the Landlord from the leased premises; and

(b) Structural repairs as defined in paragraph 7.11.

SECTION 2 - THE SHOPPING CENTRE

2.01 THE SHOPPING CENTRE

The Landlord covenants that it is the registered owner of those lands situate in the City of Edmonton, in the Province of Alberta, legally described as follows:

FIRSTLY: PLAN 2729 M.C.
BLOCK 10A
LOT 1
EXCEPTING THEREOUT:
(A) PART AS SHOWN ON ROAD PLAN 842 0973, OUT OF LOT 1.
(B) PART AS SHOWN ON ROAD PLAN 892 0664, OUT OF LOT 1.
EXCEPTING THEREOUT ALL MINES AND MINERALS.

SECONDLY: PLAN 9926234
BLOCK 10A
LOT 9
EXCEPTING THEREOUT ALL MINES AND MINERALS
AREA: 1.87 HECTARES (4.62 ACRES) MORE OR LESS

THIRDLY: PLAN 9926234
BLOCK 10A
LOT 10
EXCEPTING THEREOUT ALL MINES AND MINERALS
AREA: 0.222 HECTARES (0.55 ACRES) MORE OR LESS

(hereinafter referred to as "the said lands") and outlined by a solid BLUE line in Schedule "A", which Schedule is annexed hereto and made part hereof, and that it has erected on the said lands ROSSLYN SHOPPING CENTRE (hereinafter referred to as "the Shopping Centre"), which Shopping Centre includes a hotel and liquor store.

SECTION 3 - LEASED PREMISES AND COMMON AREAS

3.01 LEASED PREMISES

The Landlord hereby demises and leases to the Tenant and the Tenant hereby leases and takes from the Landlord the Landlord's right, title and interest in and to (as herein limited) all those certain premises in the Shopping Centre as are outlined in RED in Schedule "B" (but reserving and excluding therefrom any air rights or other right, title or interest in any space above a height of ten (10) feet from the floor of such premises, save as required for installation of the Tenant's light fixtures, and also reserving and excluding all right, title or interest in the subsurface and/or other area below such premises) which such premises are hereinafter referred to as "the leased premises" and comprise an area of **ONE THOUSAND, FIVE HUNDRED AND FORTY-FIVE & 4/10 (1545.4)** square feet, which said area shall be conclusively determined by the Landlord in accordance with the survey prepared by Gillmore Surveys (Arctic) Ltd. attached hereto as Schedule "B".

3.02 COMMON AREAS AND FACILITIES

During the term of this Lease the Tenant shall, for the purposes of the Tenant's business, have the right to use and enjoy in common with the Landlord and all other Tenants or occupants or users of the Shopping Centre, and in such manner and subject to such regulations and restrictions as the Landlord may from time to time designate, all building services and facilities which are not installed for the exclusive use of any individual Tenant, including, but not restricted to, the common parking lot, the common entrances, common stairways, corridors, passageways, sidewalks, exterior pedestrian walks, driveway, parking areas, common loading and service areas, truckways, platforms, ramps, garden and landscaped areas, and all other common, public or Tenant conveniences and appurtenances thereto located within the Shopping Centre (all of which areas lying within the area outlined by a solid BLUE line in Schedule "A" and not comprising rented or rentable areas and hereinafter referred to as "the common areas").

(a) **Additions, etc. to Common Areas and Facilities**

Notwithstanding anything herein contained to the contrary, the Landlord shall be entitled to alter the building services or facilities, the location of driveways, sidewalks or other common areas and to extend existing buildings or erect new buildings or extend existing buildings above the leased premises or other rentable premises or common areas of the Shopping Centre or add new common areas to or on the Shopping Centre, and upon any alteration of the common areas to or on the Shopping Centre or upon commencement of construction of any addition or additions to the Shopping Centre, and upon any addition of new common areas, the said Schedule "A" shall be deemed to be revised to reflect such alterations of the common areas, to exclude areas taken for construction of additional buildings or to include areas added as new common areas, as the case may be.

(b) **Obstruction of Common Areas**

The Tenant shall not without the express approval of the Landlord in writing place any sign or keep or display any merchandise on or in or otherwise obstruct any of the common areas of the Shopping Centre.

(c) **Parking Lot**

The Landlord reserves the right to restrict the use of or to close the parking lot after Shopping Centre hours to prevent misuse.

(d) **Tenant Parking**

The Tenant is entitled to the exclusive use of two (2) parking spots directly behind the leased premises. For all other parking privileges, the Tenant and employees, servants, agents and contractors of the Tenant shall park only in areas of the Shopping Centre designated by the Landlord as employee parking areas and shall not park in any other areas whatsoever. The Tenant shall, upon request, promptly furnish to the Landlord the license numbers of all motor vehicles operated by the Tenant and by the Tenant's employees, servants, agents and contractors. In the event that the Tenant, its employees, agents, or contractors park vehicles in areas of the Shopping Centre other than those areas that may be designated by the Landlord, then the Landlord shall have the right to charge the Tenant TWENTY ($20.00) DOLLARS per vehicle per day or part of a day that such vehicle is parked in any undesignated area. Such charges shall be collected as additional rent hereunder.

3.03 **STANDARD OF MEASUREMENT**

In determining the total floor areas of the leased premises or the building or buildings in which the leased premises are situate, or the Shopping Centre or part or parts of the foregoing, for the purposes of this Lease the limits of the floor area in each such case to be determined shall be deemed to be:

(a) In the case of an area common to the premises of two or more tenants or occupants of the Shopping Centre or any part or parts thereof (including an area common to the leased premises and the premises of any other tenant or occupant of the building or buildings in which the leased premises are situate), the centre line of the wall dividing such premises one from the other; and

(b) In all other cases the outside line of the exterior walls of the premises in question for which the total floor area is to be determined (including the leased premises, the building or buildings in which the leased premises are situate, the Shopping Centre or any part or parts of the foregoing); provided that if the exterior wall or walls of such premises (including the leased premises) are recessed from the outside line of the main exterior wall or walls of the building or buildings in which such premises are situate, then the last mentioned line shall be deemed to be the line of the exterior walls of such premises;

and in determining the total floor area there shall be no deduction or exclusion for any space occupied by or used for entrances, columns, shafts, stairs, elevators, escalators, mechanical rooms or other interior construction or equipment.

The foregoing floor areas shall be conclusively determined by the Landlord in accordance with the survey prepared by Gillmore Surveys (Arctic) Ltd. attached hereto as Schedule "B".

SECTION 4 - TERM

4.01 **TERM**

To have and to hold the leased premises for and during the term of **FIVE (5)** years.

4.02 **FIXTURING PERIOD**

Intentionally Deleted

4.03 **OBLIGATION TO PAY OCCUPANCY COSTS**

The Tenant's obligation to pay occupancy costs and all other rent except Minimum Rent shall commence on the 1st day of May 2019.

4.04 **COMMENCEMENT OF TERM**

The term of this Lease shall commence on the 1st day of May 2019 and terminate on the 30th day of April 2024.

4.05 **OBLIGATION TO PAY MINIMUM RENT**

The Tenant's obligation to pay minimum rent shall commence on the 1st day of May 2019.

SECTION 5 - RENT

5.01 **RENT**

The Tenant shall yield and pay to the Landlord in lawful money of Canada in every year during the term hereof without deduction, set-offs or abatement:

(a) **Minimum Rent**

(i) An ANNUAL MINIMUM RENT during the first and second years of the term of **THIRTY THOUSAND, FIVE HUNDRED TWENTY-ONE & 65/100 ($30,521.65) DOLLARS** (hereinafter referred to as "the Minimum Rent"), being **TWO THOUSAND FIVE HUNDRED FORTY-THREE**

& 47/100 ($2,543.47)DOLLARS per month (hereinafter referred to as "the Minimum Monthly Rent").

(ii) An ANNUAL MINIMUM RENT during the third and fourth years of the term of **THIRTY-TWO THOUSAND, FOUR HUNDRED FIFTY-THREE & 40/100 ($32,453.40) DOLLARS** (hereinafter referred to as "the Minimum Rent"), being **TWO THOUSAND SEVEN HUNDRED FOUR & 45/100 ($2,704.45)DOLLARS** per month (hereinafter referred to as "the Minimum Monthly Rent").

(iii) An ANNUAL MINIMUM RENT during the fifth year of the term of **THIRTY-THREE THOUSAND, NINE HUNDRED NINETY-EIGHT & 80/100 ($33,998.80) DOLLARS** (hereinafter referred to as "the Minimum Rent"), being **TWO THOUSAND EIGHT HUNDRED THIRTY-THREE & 24/100 ($2,833.24)DOLLARS** per month (hereinafter referred to as "the Minimum Monthly Rent").

5.02 **BASIS OF MINIMUM RENT**

It is understood and agreed that the Minimum Rent hereinbefore prescribed is based upon the rate of **$19.75** per square foot of leased premises per annum for the first and second years of the term of this lease and upon the rate of **$21.00** per square foot of leased premises per annum for the third and fourth years of the term of this lease and a rate of **$22.00** per square foot of leased premises per annum for the fifth year. In the event that with reference to the Standard of Measurement described in paragraph 3.03 hereof the Landlord shall determine that the square footage of the leased premises is not as specified in paragraph 3.01, then the Minimum Rent shall be adjusted accordingly and the Tenant shall pay Minimum Rent based upon such adjustment.

5.03 **PAYMENT OF MINIMUM RENT**

(a) **Payment of Minimum Rent**

On the first day of each month during the term hereof the Tenant shall pay to the Landlord, in advance, the minimum monthly rent as aforesaid.

(b) **Post-Dated Cheques**

The Tenant shall provide to the Landlord prior to the commencement of each tenancy year, twelve (12) post-dated cheques for the payment of minimum monthly rent.

(c) **Electronic Funds Transfer**

If the Landlord implements a rent collection program through automatic bank withdrawals, the Tenant shall be required to participate in such a program. In that event, all payments due by the Tenant for minimum monthly rent, occupancy costs, and any additional rent shall be paid by way of preauthorized withdrawals from the Tenant's bank account directly into the Landlord's bank account. Delays of transfer resulting from insufficient funds in the Tenant's account (or for any other reason) will result in a charge to the Tenant of $25.00 per day.

5.04 **RENT FOR PORTION OF MONTH OR YEAR**

For any period during which the Tenant carries on or is required to carry on business under the terms of this Lease and which period is less than a month or a year, minimum rent shall be payable on a per diem basis at a rate per diem which shall be one three hundred and sixty-fifth (1/365th) of the annual rent payable hereunder.

5.05 **SECURITY DEPOSIT**

The sum of **TWO THOUSAND EIGHT HUNDRED THIRTY-THREE & 23/100 ($2,833.23) DOLLARS** plus G.S.T. thereon, shall be paid by the Tenant to the Landlord upon execution of this Lease as partial consideration for the execution of this Lease, of which,

a) Which shall be held by the Landlord, without liability for interest, as security for the faithful performance by the Tenant of all terms, covenants and conditions of this Lease, and if at any time during the term of this Lease the rent or other charges properly made by the Landlord hereunder (including but not to be restricted to charges for additional rent)

are overdue and unpaid then the Landlord may at its option apply any portion of such security deposit toward the payment of such overdue rent or other charge without thereby limiting or excluding any other rights which the Landlord may have hereunder or at law, and if such security deposit is not so applied during the term hereof then such sum shall be applied as minimum rent plus G.S.T. for the last one (1) month of the term (hereinafter referred to as "the prepaid months of the term"). In the event the entire security deposit or any portion thereof is applied by the Landlord towards the payment of overdue rent or other charges accrued pursuant to the provisions hereof prior to the prepaid months of the term, then the Tenant shall on written demand of the Landlord forthwith remit to the Landlord such sum as is sufficient to restore such security deposit to the original sum deposited.

5.06 GOODS AND SERVICES TAX

The Tenant acknowledges that it is required to pay the Goods and Services Tax on all payments required to be made pursuant to this Lease by the Tenant to the Landlord and acknowledges that the Landlord collects the Goods and Services Tax (GST 104633847RT0001) as rent.

SECTION 6 - OCCUPANCY COSTS AND OTHER CHARGES

6.01 OCCUPANCY COSTS

The Tenant shall, without deductions, set-offs or abatement, during the term hereof pay all occupancy costs (as defined in paragraph 6.03) of the leased premises and the Shopping Centre on the following basis:

(a) **Occupancy Costs Exclusive to Tenant**

The Tenant shall pay all occupancy costs which are provided for and billed, metered, charged, levied or rated directly to the Tenant in respect of the leased premises, together with the costs of servicing, maintaining and replacing all equipment and machinery providing such services. In the event that any such occupancy costs are charged to and paid by the Landlord, the Tenant shall forthwith upon notice reimburse the Landlord for the full amount of any such payments made by the Landlord on behalf of the Tenant.

(b) **Occupancy Costs Not Exclusive to Tenant**

The Tenant shall pay monthly in the manner hereinafter provided its proportionate part of the occupancy costs relating to all rentable premises in the Shopping Centre which are not exclusive to the leased premises or to other rentable premises, being that portion which, at the date of such payment, the square foot area of the leased premises bears to the total square foot area of all rentable premises in the Shopping Centre.

(c) **Occupancy Costs Relating to Common Areas**

The Tenant shall pay monthly in the manner hereinafter provided its proportionate share of those occupancy costs relating to the common areas of the Shopping Centre, being that portion which, at the date of such payment, the square foot area of the leased premises bears to the total square foot area of all rentable premises in the Shopping Centre.

6.02 ESTIMATED OCCUPANCY COSTS

Occupancy costs payable by the Tenant during each calendar year or portion thereof shall be estimated by the Landlord from time to time and the Tenant hereby agrees to pay such sum to the Landlord in equal monthly instalments, each in advance. Payments of estimated occupancy costs shall be adjusted annually in the manner provided in paragraph 6.08. The Tenant shall provide to the Landlord prior to the commencement of each calendar year, twelve (12) post-dated cheques for the payment of estimated occupancy costs or if at the option of the landlord, payment by Electronic Funds Transfer.

6.03 OCCUPANCY COSTS DEFINED

Occupancy costs as referred to in this Lease shall be and consist of all costs, charges and expenses in respect of the Shopping Centre in each calendar year during the term hereof, and without restricting the generality of the foregoing, shall include:

(a) The cost of gas, oil, power, electricity, water, sewer, communications and all other utility services; provided that non-exclusive utility costs may at the discretion of the Landlord be

apportioned by the Landlord's engineering consultants in cases where, in the opinion of such engineering consultants, the consumption of any utility is heavier in one or more of the rentable premises by reason of the business carried on in such premises;

(b) The cost of cleaning and janitorial and similar services, together with the direct cost of administering such services;

(c) The cost of servicing, maintaining, repairing and replacing all heating, air conditioning, plumbing, electrical (including light fixtures) and other machinery and equipment;

(d) The cost of real property, local improvement and school taxes, rates and charges charged, levied or rated by any competent authority and the cost of all appeals against increased assessment for the purpose of such taxes, rates and charges;

(e) The cost of all business, machinery or other taxes, charges and license fees which are not directly levied against or payable by any Shopping Centre tenant individually;

(f) The cost of all insurance required to be placed and maintained by the Landlord pursuant to the provisions of paragraph 10.04(a) and any further and additional insurance placed and maintained by the Landlord with respect to the Shopping Centre;

(g) Repairs and replacement to and maintenance and operation of the parking lot and pedestrian sidewalks and for the purposes of clarification, but not so as to restrict the generality of the foregoing, repairs and replacement shall be deemed to include asphalt repairs and replacement, curb replacement, lane markings and parking stall markings;

(h) The cost of cleaning, removing snow and garbage from, servicing, maintaining, operating, repairing, replacing, supervising and policing the common areas and the costs of all supplies, labour, wages (including statutory or usual fringe benefits) and fees to independent contractors relating thereto and the direct cost of administering such;

(i) The cost of all repairs to and maintenance of the Shopping Centre buildings, including but not limited to the cost of maintenance and repair of the roof of the Shopping Centre buildings, including repair and replacement of the roof membrane, and the surface of the exterior walls of the Shopping Centre buildings, but excluding only the following:

(i) replacement normally charged to capital account as determined by the Landlord's auditors in accordance with accounting principles generally accepted in the Province of Alberta;

(ii) repairs pursuant to paragraph 7.11.

(j) The amount of all salaries, wages and fringe benefits paid to employees engaged in the maintenance, repair and operation of the Shopping Centre;

(k) The amount of fees paid to independent contractors engaged in the maintenance, repair and operation of the Shopping Centre;

(l) The cost of maintenance, care and replacement of landscaped areas;

(m) The costs of all outside lighting, including replacement thereof;

(n) The cost of painting the Shopping Centre;

(o) The cost of operating, maintaining and repairing any Shopping Centre identification sign;

(p) The cost of management, administration and bookkeeping services at fifteen (15%) per cent on the total amount of all occupancy costs excepting only taxes.

6.04 **TENANT'S BUSINESS TAX**

In addition to other payments to be made by the Tenant hereunder, the Tenant shall pay all business, sales, equipment, machinery or other taxes, charges and license fees levied or imposed by any competent authority in respect of the personnel, business, sales, equipment, machinery or income of the Tenant.

6.05 **ADDITIONAL EXPENSES CAUSED BY TENANT**

In addition to other payments to be made by the Tenant hereunder, the Tenant shall pay to the Landlord within ten (10) days after the Landlord giving to the Tenant notice specifying the amount thereof:

(a) An amount equal to the excess (if any) in the taxation rate for separate schools over and above the taxation rate for public schools in the event that the Tenant designates that any taxes payable by the Tenant hereunder will be directed toward the support of separate schools;

(b) An amount equal to any increase in taxes or insurance premiums payable with respect to the leased premises or the Shopping Centre by reason of any installation or alteration made in, upon or to the leased premises, or by reason of any act, omission or default of the Tenant;

(c) An amount equal to any increase in the annual occupancy costs of the Shopping Centre directly attributable to any installation in or upon the leased premises or to the business operations conducted upon the leased premises;

(d) An amount equal to all professional fees incurred by the Landlord in enforcement of the Tenant's covenants under this Lease and in respect of the recovery of any insurance claims on behalf of the Tenant, and all costs incurred or sums paid by the Landlord or any tenant or tenants or other occupants of the Shopping Centre by reason of any breach of the Tenant's covenants to be performed and observed by the Tenant pursuant to the terms of this Lease;

(e) Any and all sums payable by the Tenant to the Landlord pursuant to any schedule, offer to lease or other agreement mentioned therein.

6.06 OCCUPANCY COSTS FOR PORTION OF MONTH OR YEAR

Where any occupancy costs or additional payment and charge is payable for a portion of a month, such occupancy costs, additional payment and charge shall be payable on a per diem basis which shall be one three hundred and sixty-fifth (1/365th) of annual occupancy costs estimated by the Landlord, subject to adjustment as provided in paragraph 6.08.

6.07 SERVICES TO BE PERFORMED BY LANDLORD

The Landlord shall with reasonable diligence in the manner and at the rates and costs as would a prudent owner apply all occupancy costs paid hereunder towards, and shall do all things necessary or desirable, to provide the utilities, cleaning, maintenance, repairs, replacement, supervision, administration, management or other services and facilities, to pay all taxes and other occupancy costs to which the Tenant contributes under the provisions of this Lease; subject always to the right of the Landlord to withhold payments in respect of the accounts, rates, levies or assessments which the Landlord in good faith disputes, subject to any interruptions to utility or other services during periods of repair or construction, or which are beyond the reasonable control of the Landlord, and subject to the provisions of paragraph 6.01(a) relating to payments and repairs in respect of items included in occupancy costs which are exclusive to the Tenant or any rentable premises in the Shopping Centre.

6.08 STATEMENTS OF OCCUPANCY COSTS AND ADJUSTMENT OF MONTHLY PAYMENTS

The Landlord shall furnish to the Tenant on or before June 30th of each calendar year a statement of annual occupancy costs during the immediately preceding calendar year or portion thereof during which occupancy costs are payable by the Tenant, such statement to be certified correct by a responsible officer of the Landlord. Within ten (10) days after delivery of such statement the Landlord, or the Tenant (as the case may be), shall make the appropriate adjusting payment in the amount of the difference between the total monthly occupancy costs actually paid by the Tenant during the preceding calendar year or portion thereof and the actual occupancy costs that should have been paid on the basis of the occupancy costs set out in such statement. Neither party may claim a re-adjustment in respect of occupancy costs if based upon any error of computation or allocation except by notice delivered to the other party within six (6) months after the date of delivery of the statement.

6.09 LANDLORD'S RECORDS

The Landlord shall keep proper and sufficient records and accounts of all occupancy costs. The Tenant or its duly accredited agent may, at any reasonable time and upon five (5) days prior notice to the Landlord, inspect such records and accounts at the head office of the Landlord for the purpose of verifying any statement of annual occupancy costs furnished by the Landlord. Provided, that any such inspection must be completed not later than six (6) months after delivery to the Tenant of a statement pursuant to paragraph 6.08 hereof. Provided further, that in no event shall any such inspection or planned inspection permit the Tenant to delay payment of occupancy costs as required by this Section 6.

SECTION 7 - PREPARATION OF LEASED PREMISES, REPAIRS AND MAINTENANCE

7.01 PREPARATION OF LEASED PREMISES

(a) **Preparation of Leased Premises by Landlord**

The Tenant accepts the leased premises on an as is basis and the Landlord will not provide any additional improvements.

(b) **Preparation of Leased Premises by Tenant**

The Tenant shall be responsible for all other leasehold improvements in the leased premises. All plans for improvements must be submitted to the Landlord for approval, which approval shall not be unreasonably withheld, prior to commencement of construction.

7.02 EXAMINATION AND ACCEPTANCE

The taking of possession shall be conclusive evidence as against the Tenant that at the time thereof the leased premises were in good and satisfactory condition and that all undertakings, if any, of the Landlord to alter, remodel or improve the leased premises or the Shopping Centre and all representations, if any, by the Landlord respecting the condition of the leased premises or the Shopping Centre have been fully satisfied and performed by the Landlord.

7.03 INSTALLATION AND REMOVAL OF TRADE FIXTURES

The Tenant shall install and during the term hereof maintain in the leased premises first class trade fixtures and furniture appropriate for the Tenant's business and the general character of the Shopping Centre, provided that:

(a) Only first class trade fixtures shall be installed;

(b) Such installation does not damage the structure of the Shopping Centre;

(c) The charge for and the cost of any and all damage to the Shopping Centre resulting from such installation will be paid by the Tenant;

(d) Such installation does not contravene the provisions of paragraph 7.04; and

(e) Provided further, that if the Tenant has paid the rent and additional rent hereby reserved and performed the covenants herein contained and on its part to be performed, the Tenant shall have the right at the expiration of this Lease to remove such trade fixtures. The Landlord may, at its option, require such removal. In either event, the Tenant shall make good any damage or injury caused to the leased premises or the Shopping Centre by reason of such removal.

7.04 TENANT'S ALTERATIONS

The Tenant may at any time, and from time to time, at its sole expense make such changes, alterations or improvements to, and may paint and decorate the interior of the leased premises in such manner as shall in the judgment of the Tenant better adapt the same for the purpose of its business, provided that:

(a) No changes, alterations, additions or improvements to the leased premises shall be made without the prior written consent of the Landlord;

(b) All changes, alterations, additions and improvements shall comply with all statutes, regulations, by-laws, specifications or requirements of any municipal, provincial, federal or other authority;

(c) The Tenant shall observe all the provisions of this Lease relating to fire regulations and insurance policies;

(d) The Tenant shall not under any circumstances, whether in respect of changes, alterations and improvements of the leased premises pursuant to this paragraph 7.04, or otherwise, permit any lien, caveat, encumbrance or charge to be filed against the leased premises or the Shopping Centre and shall forthwith discharge any lien which may be filed;

(e) The Tenant will not be entitled to make any changes, alterations, additions or improvements whatsoever to the structural, the electrical, mechanical (including heating

and air conditioning), plumbing or telephone facilities, equipment, machinery, connections, wiring, pipes, ducts or other paraphernalia; and

(f) The Tenant shall not, without the previous written consent of the Landlord:

(i) Erect, install, display, inscribe, paint or affix any sign, lettering or advertising medium to, upon or above any interior or exterior glass nor to any show window or door in or upon the leased premises, which consent shall not be unreasonably withheld; or

(ii) Use any advertising media that the Landlord shall deem objectionable to it or other tenants, such as loudspeakers, photographs, broadcasts or telecasts in any manner to be heard or seen outside the leased premises; or

(iii) Install any exterior lighting or plumbing fixtures, shades, awnings, exterior decorations or paintings or build any fence, aerial or mast to make any change to the store front. Provided that in respect of the installation, maintenance and servicing of fascia signs for the exterior walls of the leased premises fronting on the exterior and interior common areas, the Landlord shall have the right to designate the contractor for the entire Shopping Centre for carrying out of such functions or a combination thereof.

Provided further that the Tenant shall indemnify and save harmless the Landlord from any and all claims, demands, loss or damage to any person or property arising out of any such signs, masts, aerials or other installations.

7.05 **TENANT'S REPAIRS**

The Tenant shall at all times during the term of this Lease at its sole cost and expense well, properly and sufficiently repair, decorate, maintain, mend and keep the leased premises with the appurtenances (including but without restricting the generality of the foregoing, signs and the inside and outside plate glass windows, partitions, doors, door frames and door jambs) in good and substantial repair and repair, maintain and fully replace where required all fixtures, including the plumbing, heating, ventilating and air conditioning equipment and things which at any time during the term of this Lease are located or erected in or upon the leased premises, such repair, maintenance and replacement to be made by the Tenant when, where and so often as need shall be, always excepting only:

(a) Repairs required to be made by the Landlord pursuant to paragraph 7.11(a); and

(b) Repairs necessitated by damage from hazards against which the Landlord is required to insure hereunder;

unless such excepted repairs are necessitated by the acts or omissions of the Tenant, its agents, employees, invitees or licensees. The cost of any repair, decoration, maintenance, amendment or replacement required to be made in or to any portion of the Shopping Centre directly as a result of any act or omission of the Tenant, its employees, servants, agents or licensees shall be paid in full by the Tenant.

7.06 **NOTICE OF DEFECTS**

The Tenant shall give the Landlord prompt written notice of any accident to or defect in the plumbing, water pipes, heating and/or air conditioning apparatus, electrical equipment, conduits or wires, or of any damage or injury to the leased premises or any part thereof however caused; provided that nothing herein shall be construed so as to require repairs to be made by the Landlord, except as expressly provided in this Lease.

7.07 **CLEANLINESS**

(a) The Tenant shall not place, leave or permit its employees or agents or those delivering merchandise to its premises to throw, place or leave any debris or refuse in or upon the common areas of the Shopping Centre and shall make suitable provision at its sole cost and expense for the refrigeration of all perishable garbage.

(b) The Tenant shall at its sole cost and expense keep the leased premises in a tidy, clean and sanitary condition and shall observe all rules, regulations and directions of building inspectors, health, fire or other municipal or other officers, agencies or departments and of the Landlord relating to cleanliness, sanitation, garbage removal and refrigeration of all perishable garbage and maintenance of the leased premises.

7.08 **LANDLORD MAY INSPECT**

The Landlord may enter and view the state of repair or cleanliness of the leased premises during all normal business hours and the Tenant shall forthwith repair, maintain and clean according to notice in writing from the Landlord or its agents or employees.

7.09 **LANDLORD MAY REPAIR**

In the event that the Tenant fails to repair, maintain or clean in accordance with the provisions hereof, the Landlord, its agents or employees may at any reasonable time enter the leased premises and make the required repairs or do the required maintenance or cleaning and recover from the Tenant the cost thereof (including the cost of repairs or cleaning required to be done after the Tenant vacates the leased premises at the end or sooner than the termination date of the lease term) plus a fifteen (15%) per cent supervision charge on the total amount of such costs, all such costs and charges to be deemed additional rent. In making such repairs or doing such maintenance or cleaning the Landlord may bring and leave upon the leased premises all necessary materials, tools and equipment and the Landlord shall not be liable to the Tenant for any inconvenience, annoyance, loss of business or any injury suffered by the Tenant by reason of the Landlord effecting such repairs, maintenance or cleaning.

7.10 **CONDITION OF PREMISES ON TERMINATION**

Upon vacating the leased premises at the end or sooner than the termination date of the lease term, the Tenant shall leave the leased premises in the state of repair and cleanliness required to be maintained by it during the term of this Lease.

7.11 **LANDLORD'S REPAIRS**

(a) The Landlord shall make structural repairs to the perimeter walls (excluding plate glass, windows, partitions, doors, door frames and door jambs as set out in paragraph 7.05 preceding), roof as may be charged to the capital account, bearing structure and foundation of the Shopping Centre, provided that any and all such repairs necessitated by fire or other casualty whatsoever shall be made only in accordance with the provisions of Section 10 hereof. Provided always, that the Landlord will not be required to make any repairs necessitated by reason of the negligence or default of the Tenant, its servants, agents or licensees.

(b) The Landlord shall be entitled to make changes or additions to the pipes, conduits and ducts or other installations in the leased premises where necessary to serve other premises in the Shopping Centre, but shall not unreasonably interfere with the use and enjoyment of the leased premises and shall make good any resulting damage to the leased premises.

(c) The Landlord shall be entitled to make such changes or additions to the buildings and facilities of the Shopping Centre as the Landlord may in its sole discretion deem necessary or desirable in the overall interest of the Shopping Centre.

(d) For the purpose of this paragraph the Landlord shall have the right to enter into and upon and attach scaffolds or other temporary fixtures to or in the leased premises.

SECTION 8 - CONDUCT OF BUSINESS, ADVERTISING AND PROMOTION

8.01 **USE OF PREMISES**

(a) **Use of Premises and Exclusive Use**

The Tenant covenants that the leased premises shall be used and occupied only for the purpose of operating a Veterinarian Clinic and domestic house pet hospital.

(b) **Firm Name and Style**

The Tenant further covenants and agrees that it will carry on business under its own name, CLINIC SOLUTIONS INC.

(c) **Character of Business**

The Tenant acknowledges and it is a condition of this Lease that all tenancies in the Shopping Centre are to be or have been selected and approved by the Landlord and all leases in the Shopping Centre are to be or have been negotiated and executed

pursuant to and in accordance with agreement and consent of the Landlord, the major tenants and the holders or Trustee for the holders of the long term debt financing for the Shopping Centre, on the basis of the nature, character, quality and price level of goods and services to be sold or offered from each store premises in the Shopping Centre, and that no change in the nature, character or name of the business carried on by the Tenant in or from the leased premises or in the quality or price level of goods and services sold or offered by the Tenant, in or from the leased premises shall be permitted without the written consent of the Landlord (and if required by the Landlord, the major tenants and the holders or the Trustee for the holders of the long term debt financing for the Shopping Centre) notwithstanding any contrary provision of the Landlord and Tenant Act of the Province of Alberta, as amended from time to time or other legislation of the Province of Alberta relating to landlord and tenant relationship, the benefit of which is hereby waived by the Tenant. Without limiting the generality of the foregoing, the Tenant shall not use or permit all or any portion of the leased premises to be used:

(i) to sell or permit the sale or disposition in any form or manner of alcoholic beverages;

(ii) to sell or permit the sale or disposition in any form or manner of tobacco products;

(iii) as an office providing insurance services;

(iv) to operate a business to perform either tax preparation services or electronic filing services or both.

(v) as an optometry clinic and optical dispensary;

(vi) as a loaning, financial institution or any bank, trust company or other person, firm, corporation or entity which accepts money on deposit, or for the installation of automatic banking, vault, kiosk or device to provide a banking service of any kind whatsoever;

(vii) as a chiropractic clinic;

(viii) for cheque cashing and related financial services;

(ix) as a martial arts school;

(x) for the sales and service of electronic equipment;

(xi) for the sale of pizza or donairs, whether for consumption on or off premises;

(xii) as a restaurant;

(xiii) as an esthetician and beauty salon;

(xiv) as a variety drug store and pharmaceutical dispensary;

(xv) for the operation of a store whose principal business is the sale of health and beauty aids;

(xvi) for the operation of a store whose principal business is the sale of home health care and convalescent products;

(xvii) for the operation of a health food store or a store whose principal business is the sale of vitamins, neutraceuticals and/or health food supplements, including without limitation, a store similar to those operated under the trade names "GNC " or "Noah's Natural Food ";

(xviii) to operate a retail women's clothing and specialty perfume business;

(xix) to operate a tailoring business, a dry-cleaning depot, a laundry drop off service or a rental/sales outlet for formal wear.

(xx) to operate a barber shop and hairstyling salon.

(xxi) to operate a denture clinic.

(d) **Assignment**

The Tenant covenants and agrees not to assign, sublet, grant a concession or license or part with possession of the leased premises or any part thereof without the prior written consent of the Landlord in each instance, which consent shall not be unreasonably withheld. The consent by the Landlord to any assignment, subletting, concession or license shall not constitute a waiver of the necessity for such consent to any subsequent assignment, subletting, concession or license. This prohibition against assignment, subletting, concession or license shall be construed to include a prohibition against any assignment, subletting, concession or license by operation of law. If this Lease be assigned, or if the leased premises or any part thereof be sublet or occupied by anyone other than the Tenant, or if the Tenant shall grant any concession or license, the Landlord may collect rent from the assignee, sublessee, occupant, concessionaire or licensee and apply the net amount collected to the rent herein reserved, but no such assignment, subletting, occupancy, concession or license or the collection of such rent shall be deemed a waiver of this covenant, or the acceptance of the assignee, sub-lessee, occupant, concessionaire or licensee as tenant, or a release of the Tenant from the further performance by the Tenant of the covenants on the part of the Tenant herein contained. If the Landlord approves an assignee, the Tenant shall be relieved of the obligations incurred by the assignee subsequent to the assignment. In the event that the Landlord shall engage a solicitor to review any request for assignment or subletting, the Tenant shall pay the costs of the Landlord's solicitor on a solicitor/client basis, including any fee that the solicitor may submit for the preparation of a Consent to Assignment.

8.02 **CONTINUED OCCUPANCY BY TENANT**

The Tenant acknowledges that its continued occupancy of the leased premises and the regular conduct of its business therein are of the utmost importance to the Landlord in avoiding the appearance and impression generally created by vacant space in commercial buildings, in facilitating the leasing of vacant space in the Shopping Centre, in the renewal of other leases in the Shopping Centre and in maintaining the character and quality of the Shopping Centre and of the tenants of the Shopping Centre, and that the Landlord will suffer substantial damage if the leased premises are left vacant or are vacated by the Tenant during the term of this Lease, even in the event the Tenant continues to pay rent as required hereunder. The Tenant, therefore, covenants that it shall occupy and utilize the entire leased premises in the active conduct of its business during the whole of the lease term hereof and shall conduct such business in a reputable, diligent and energetic manner. Without restricting the generality of the foregoing, the Tenant shall maintain and attractively display on the leased premises such stock of goods, wares, merchandise and such equipment as are appropriate for the successful operation of the Tenant's business and shall employ such clerks, salesmen and others as shall be sufficient for the service and convenience of customers and shall at all times:

(a) Provide and maintain (if applicable) sufficient customer aisles in the leased premises for the free movement of customer traffic and such additional aisle space as the Landlord may reasonably stipulate for deliveries and customary shopping centre services;

(b) Conduct its business in the leased premises in a lawful manner during all days and hours designated by the Tenant, subject to any contrary requirements of any governmental or other duly constituted authority;

(c) Keep its display windows and signs illuminated during all business hours and on each and every business day until 10:00 o'clock in the evening or as otherwise required by the Landlord;

(d) Refrain from diverting to another location business that would normally be transacted on the leased premises;

(e) Refrain from directly or indirectly applying to or supporting any application to any governmental, municipal or other duly constituted authority or by any non-governmental organization for the enactment or promulgation of any early closing by-law or regulation regulating or restricting the hours of business of any class of business or shop conducted within the Shopping Centre;

(f) Maintain reasonable stock of advertised merchandise sufficient to satisfy reasonable traffic projections, or alternatively, give notice that advertised merchandise is of "limited quantity";

(g) Properly and consistently price mark all merchandise with a view to customer convenience.

8.03 **TENANT'S ADVERTISING**

The Tenant shall include the address and name "ROSSLYN SHOPPING CENTRE, EDMONTON, ALBERTA" or such other name as the Landlord may from time to time designate for the Shopping Centre, together with the symbol, logo, trade name or trademark devised by the Landlord and the identity of the Tenant's business activity in the leased premises in all advertisements in any medium made by the Tenant with respect to its business activity in the leased premises and in all advertisements in which the address and identity of any other local business activity of like character conducted by the Tenant will be mentioned.

8.04 **NO AUCTION OR BANKRUPTCY SALE**

No auction, fire sale or bankruptcy sale, sale of second hand merchandise or discount type business may be conducted on the leased premises, or advertised, without the previous written consent of the Landlord.

8.05 **NUISANCE**

The Tenant shall not at any time during the term of this Lease use loudspeakers, phonographs, broadcasts or telecasts which may be heard or seen outside the leased premises and shall not use, exercise, carry on, permit or suffer to be used, exercised or carried on, in or upon the leased premises or any part thereof, any noxious, noisome or offensive act, trade, business, occupation or calling, and no act, matter or thing whatsoever shall at any time during the said term be done in or upon the leased premises or any part thereof, nor shall any electrical and mechanical systems operated by the Tenant in the leased premises be operated or fail to be operated in any manner which may be or grow to the annoyance, nuisance, damage or disturbance of the occupiers or owners of the Shopping Centre, other tenants of the Shopping Centre, or to occupants or owners of adjoining lands and properties or which may constitute a fire hazard.

8.06 **COMPETITION**

During the term of this Lease or any and all renewals thereof, if any, the Tenant (or if the Tenant is a limited company, any officer, director or shareholder or parent or subsidiary or affiliated company of the Tenant) shall not within a distance of one and one-half (1.5) kilometres from the leased premises directly or indirectly engage or participate in, or hold any security or debt of, or furnish financial aid or other assistance to (whether as owner, stockholder, principal, agent, employee or independent contractor) any business enterprise or undertaking which in any manner or degree is competitive with the Tenant's use of the leased premises.

8.07 **ENVIRONMENTAL ISSUES**

8.07.01 In this Lease:

(a) "Environmental Laws" means all applicable federal, provincial, municipal or local laws, statutes, regulations, by-laws, Orders, Permits, policies and guidelines relating in whole or in part to the protection of the environment, occupational health and safety, product liability, or the transportation or management of any substances.

(b) "Environmental Review" means a review and assessment of the Property or a party to the Lease and may include:

(i) inspecting and testing the Property to identify the presence of any Hazardous Substance and ensure compliance with Environmental Laws;

(ii) reviewing any records, Notices, Orders and Permits in the possession of a party to the Lease that relate to compliance with Environmental Laws; or

(iii) obtaining information (including copies of any records, Notices, Order and Permits) from anyone with knowledge about the Property or a party to the Lease with respect to compliance with Environmental Laws (including any government ministry, department or administrative or regulatory agency, current and previous landlords, tenants and neighbours, and any of their employees).

(c) "Property" includes the leased premises, the Shopping Centre and the Lands.

8.07.02 The Landlord may, from time to time during the term, conduct an Environmental Review of the Tenant. For the purposes of such Environmental Review, the Tenant must provide the Landlord with:

(a) access, during business hours, to the leased premises for the purpose of conducting an inspection;

(b) access to all records, Notices, Orders and Permits in the possession or control of the Tenant

relating to compliance with Environmental Laws; and

(c) access to any employee of the Tenant who may have knowledge regarding the operations of the Tenant and the compliance of the Tenant with Environmental Laws.

8.07.03 The Tenant shall comply with Environmental Laws. The Tenant shall provide notice, in accordance with Section 11.16 of the Lease, to the Landlord of:

(a) any actual, alleged or threatened release of a contaminant on, under or near the Property; or

(b) any actual, alleged or threatened material non-compliance by the Tenant with Environmental Laws.

Where, during the term, the Tenant has, through its use or occupancy of the leased premises, caused or permitted a release of a contaminant at, from or to the leased premises, the Tenant shall immediately clean up the leased premises and any affected areas, at the Tenant's expense. Such clean up shall include any necessary restoration or remediation to a condition that complies with Environmental Laws.

On the termination of the Lease for any reason, the Tenant shall remove any contaminant or contamination which, through its use or occupancy of the leased premises, it has brought to or created at the Property at the Tenant's expense.

8.07.04 Notwithstanding any other terms, covenants and conditions contained in this Lease, the Tenant shall indemnify the Landlord and save it harmless from and against any and all loss (including loss of rent payable by the Tenant pursuant to this Lease), claims, actions, damages, liability and expenses in connection with loss of life, personal injury, damage, including contamination, to property or any other loss or injury whatsoever arising from or out of this Lease, any breach by the Tenant of any provision contained in this Lease, any occurrence in, upon or at the leased premises, the occupancy or use by the Tenant of the leased premises or any part thereof, or occasioned wholly or in part by any act or omission of the Tenant or by anyone permitted to be on the leased premises by the Tenant. If the Landlord shall, without fault on its part, be made a party to any litigation commenced by or against the Tenant, the Tenant shall protect, indemnify and hold the Landlord harmless and shall pay all costs, expenses and reasonable legal fees incurred or paid by the Landlord in connection with such litigation. The Tenant shall also pay all costs, expenses and legal fees that may be incurred or paid by the Landlord in enforcing the terms, covenants and conditions of this Lease, unless a court shall decide otherwise. This indemnity shall survive the termination or surrender of this Lease and remain in force and effect notwithstanding such termination or surrender.

8.07.05 The Tenant's representations and warranties, covenants and agreement to indemnify provided in this part shall survive the termination of the Lease.

SECTION 9 - DEFAULT AND TERMINATION

9.01 DEFAULT IN PAYMENT OF RENT

The tenancy granted by this Lease is expressly subject to the condition that if:

(a) The Tenant fails to pay the rent or other charges required to be paid by the Tenant hereunder although no formal demand shall have been made therefor; or

(b) If the Tenant shall fail to observe, perform or keep any one or more of the covenants, provisions or stipulations to be observed, performed or kept by the Tenant hereunder, and if such failure shall continue for a period of ten (10) days after notice to the Tenant of such failure;

then, in either or both of such events, at the option of the Landlord, the full amount of the current month's and the next ensuing three (3) months' instalment of minimum rent shall immediately become due and payable and the Landlord may immediately distrain for the same, together with any arrears then unpaid; and, in either or both of such events, the Landlord may re-enter the leased premises and upon such re-entry this Lease shall thenceforth be terminated and of no further force or effect and no payment or acceptance of rent subsequent to the events of default hereinbefore in this clause cited shall give the Tenant the right to continued occupancy of the leased premises or in any way effect the rights of the Landlord herein or have the effect of reinstating this Lease.

9.02 REASONS FOR TERMINATION

The Tenant covenants with the Landlord, and it is a condition of this Lease that:

(a) If the term hereby granted or any of the goods or chattels on the leased premises are at any time repossessed, seized or taken in execution or attachment by any creditor of the Tenant, whether under bill of sale, chattel mortgage, debenture, conditional sales contract, lien, note, lease of personal property or consignment contract; or

(b) If a Writ of Enforcement or Replevin Order issues against the goods or chattels of the Tenant; or

(c) If the Tenant makes any assignment for the benefit of creditors, or becoming bankrupt or insolvent takes the benefit of or becomes subject to any statutes that may be in force relating to bankrupt or insolvent debtors; or

(d) If any application or petition or certificate or order is made or granted for the winding-up or dissolution of the Tenant, voluntarily or otherwise; or

(e) If the leased premises at any time during the lease term become vacant in consequence of their abandonment by the Tenant or the removal of the Tenant by legal process for non-payment of rent, breach of covenant or any other cause; or

(f) If the Tenant does not, within ten (10) days after notice in writing from the Landlord, rectify or correct any non-observance or non-performance of all and every of the covenants, provisions, stipulations and conditions contained in this Lease; or

(g) If any insurance policy insuring the Shopping Centre or the Landlord or tenants of the Shopping Centre is cancelled or refused to be renewed by reason of the use and occupation of the leased premises or any part thereof; or

(h) If the Tenant is a corporation and if by sale or other disposition the control of the Tenant changes at any time during the term of this Lease; or

(i) If the Tenant fails to move into or take possession of the leased premises and open for business as required by this Lease; or

(j) If at any time during the term hereof the Tenant or any other person removes or attempts to remove, without the consent in writing of the Landlord, any goods or chattels from the leased premises, save and except in the ordinary course of the Tenant's business, or in the course of replacement or renovations; or

(k) In case the leased premises are used by any other person or for any other purpose than as herein provided without the written consent of the Landlord;

then and in any of such cases, at the option of the Landlord, the full amount of the current month's and the next ensuing three (3) months' instalments of minimum rent shall immediately become due and payable and the Landlord may immediately distrain for the same, together with any arrears then unpaid; and in every such event the Landlord shall be entitled to forthwith re-enter the leased premises, and upon such re-entry, this Lease shall thenceforth be terminated, and be of no further force and effect and no payment or acceptance of rent subsequent to the event of default hereinbefore in this clause cited shall give the Tenant the right to continued occupancy of the leased premises or in any way affect the rights of the Landlord herein or have the effect of reinstating this Lease.

9.03 SURRENDER OF PREMISES ON TERMINATION

Upon the expiration of the Lease or the sooner determination of the term hereby granted, the Tenant covenants to immediately surrender and yield up possession of the leased premises in the same condition as the leased premises were in upon delivery of possession thereto under this Lease, damage by unavoidable casualty excepted to the extent that the same is covered by the Landlord's fire insurance policy with extended coverage endorsement, and shall surrender all keys for the leased premises to the Landlord at the place then fixed for payment of rent and shall inform the Landlord of all combinations of locks, safes and vaults, if any, in the leased premises. The Tenant shall remove its trade fixtures at the expiration of this Lease or the sooner determination of the term hereby created. The Landlord may, at its option, require the Tenant to remove any and all alterations or improvements, at the Tenant's own expense, before surrendering the leased premises as aforesaid. The Tenant shall repair any damage to the leased premises caused thereby at the expiration or other determination of the term of this Lease. Provided that, unless otherwise agreed in writing, all alterations, improvements and fixtures (other than the fixtures in the nature of trade or Tenant's fixtures) upon the leased premises and which in any manner are or shall be attached to the floors, walls or ceiling, or any linoleum or other floor covering which may be cemented or otherwise affixed to the floor of the leased premises shall remain upon the leased premises and become the property of the Landlord at the expiration or sooner determination of this Lease.

9.04 **INTEREST**

The Tenant shall pay to the Landlord interest at eighteen (18%) per cent per annum on all overdue payments required to be made by the Tenant under any one or more of the provisions of this Lease and which are more than ten (10) days overdue.

9.05 **APPLICATION OF MONIES**

The Tenant hereby agrees that all payments by the Tenant under the terms of this Lease, whether in respect of minimum rent, occupancy costs or additional charges or sums required to be paid by the Tenant under the terms of this Lease may be applied by the Landlord towards payment of any other monies due and payable by the Tenant to the Landlord at the date of such payment irrespective of the purpose for which such payment by the Tenant was tendered.

9.06 **LANDLORD'S RIGHTS ON RE-ENTRY**

The Tenant agrees that in the event the Landlord shall be entitled to re-enter and retake possession of the leased premises, it may use such force as it may deem necessary for that purpose and for gaining admittance to the leased premises without being liable in respect thereof for any loss or damage occasioned thereby. The Tenant hereby expressly releases the Landlord from all actions, proceedings, claims and demands whatsoever for or in respect of any such forcible entry or any loss or damage that may be sustained by the Tenant in respect therewith.

9.07 **LANDLORD'S RIGHTS ON TERMINATION**

Upon termination of this Lease prior to the expiration of the term by passage of time:

(a) The Landlord may re-let the leased premises or any part thereof;

(b) The Tenant shall pay to the Landlord on demand such reasonable expenses as the Landlord may incur in re-letting the leased premises, including legal costs, legal fees and real estate fees and commissions and expenses of keeping the leased premises in good order and of preparing the leased premises for re-letting;

(c) All rent shall immediately become due and be paid up to the time of such termination; and

(d) The Landlord may, at its option, and in addition to any other remedies it may have hereunder, require the Tenant to pay to the Landlord as liquidated damages for default of the Tenant in the observance and performance of its covenants under this Lease, all rent and all occupancy costs (as such occupancy costs are estimated by the Landlord) reserved to be paid and remaining unpaid by the Tenant under this Lease from the date of termination to and including the expiration of the term of this Lease.

9.08 **EXEMPTION RE DISTRESS**

The Tenant waives and renounces the benefit of any present or future Act of the Legislature of the Province of Alberta which purports to take away or limit the Landlord's rights of distress and notwithstanding any such Act, the Landlord may seize and sell all the Tenant's goods and chattels for payment of rent, accelerated rent and costs. The Tenant further agrees that the Landlord, in addition to any remedy otherwise provided by law, may seize and sell the goods and chattels of the Tenant for payment of rent and additional rent, accelerated rent and costs, at any time and at any place to which the Tenant or any other person may have removed such goods and chattels, in the same manner as if such goods and chattels had remained and had been distrained upon the leased premises.

9.09 **FORBEARANCE**

No condonation, forgiveness, waiver or forbearance by the Landlord or any non-observance or non-performance by the Tenant of any of the provisions hereunder will operate as a waiver or estoppel by or against the Landlord in respect of any such provision, or any subsequent non-observance or non-performance by the Tenant of any of the provisions hereunder.

9.10 **OVERHOLDING**

In the event that the Tenant remains in possession of the leased premises after the expiration of this Lease or sooner determination of this Lease as herein provided and without the execution and delivery of a new Lease, the Landlord may re-enter and take possession of the leased premises and remove the Tenant therefrom, or, the Tenant shall, in the event of such overholding, be deemed to be occupying the leased premises as a tenant from month to month at a monthly rent equal to one hundred and fifty (150%) per cent of the highest minimum rent, plus occupancy cost payment actually paid in any month during the term of this Lease payable in advance on the first day of each month, subject to all the covenants, agreements,

conditions, provisions and obligations of this Lease insofar as the same are applicable to a month-to-month tenancy, it being clearly understood that the Tenant shall have no right of renewal. Such month-to-month tenancy may be terminated by the Landlord or the Tenant on the last day of any calendar month by delivery of at least thirty (30) days' advance notice of termination to the other. A tenancy from year to year will not be created by implication of law.

9.11 **INDEMNITY BY TENANT**

The Tenant will indemnify and save harmless the Landlord of and from all fines, suits, claims, demands, actions, costs, charges and expenses of any kind or nature which the Landlord may become liable for or suffer by reason of any breach, violation or non-performance by the Tenant of any covenant, term or provision hereof or by reason of any injury occasioned to or suffered by any person or persons or any property by reason of any act, neglect or default on the part of the Tenant or any of its employees, agents, independent contractors, invitees, licensees or trespassers.

9.12 **LEGAL COSTS**

The Tenant further covenants and agrees to pay the Landlord as additional rent, on the basis of a solicitor and his own client, all legal costs and legal fees lawfully incurred in obtaining possession of the leased premises upon the expiration or earlier termination of this Lease or in enforcing any covenant or agreement of the Tenant herein contained.

9.13 **CUMULATIVE REMEDIES**

All rights and remedies of the Landlord enumerated in this Lease are cumulative and none will exclude any other right or remedy allowed by law.

9.14 **BANKRUPTCY**

Notwithstanding anything herein contained, in the event of a default pursuant to paragraph 9.02(c) then and in any such event the then current month's rent and the next ensuing three months' rent shall become due and be paid.

SECTION 10 - DAMAGE, DESTRUCTION, EXPROPRIATION, INSURANCE LIMITS OF LANDLORD'S LIABILITY

10.01 **DESTRUCTION OF LEASED PREMISES BY FIRE**

(a) **Destruction of Leased Premises**

If during the term of this Lease or any renewal thereof the leased premises are damaged or destroyed by hazards against which the Landlord is required to insure under the provisions of this Lease or by any other casualty whatsoever and such damage or destruction cannot, in the opinion of the Landlord's architect, be repaired by reasonable diligence within ninety (90) days after such damage or destruction, the Landlord may by notice in writing to the Tenant elect either to repair such damage or destruction (including any such demolition and reconstruction as the Landlord's architect may recommend as necessary or desirable in the overall interests of the Shopping Centre) or to terminate this Lease.

(b) **Tenant's Election**

If within sixty (60) days after the date of such damage or destruction the Landlord has not given the Tenant notice of its intent either to repair such damage or destruction or to terminate this Lease, the Tenant may by notice in writing to the Landlord terminate this Lease.

(c) **Whole of Premises Unfit for Occupancy**

If this Lease is not terminated by reason of such damage or destruction and if such damage or destruction is such as to render the leased premises wholly unfit for occupancy, then the rent hereby reserved shall abate and the Landlord will repair the same with all reasonable dispatch. Seven (7) days after the giving of notice from the Landlord to the Tenant together with the Certificate of the Landlord's architect that such repairs have been substantially completed, rental payable by the Tenant under this Lease shall recommence.

(d) **Part of Premises Unfit for Occupancy**

If this Lease is not terminated by reason of such damage or destruction and if the damage or destruction is such that the leased premises are capable of being partially used, then until

such damage or destruction is repaired, the rent will abate in the proportion that the part and location of the leased premises are unfit for their intended use and the Landlord will repair the same with all reasonable dispatch. Seven (7) days after the giving of notice from the Landlord to the Tenant together with the Certificate of the Landlord's architect that such repairs have been substantially completed, full rent payable by the Tenant under this Lease shall recommence. The amount of the abatement will, in the event of the parties not being able to agree thereon, be determined by arbitration at the cost and expense of the Landlord and the Tenant equally. Each party shall with all reasonable dispatch appoint an arbitrator and the two arbitrators shall appoint a third arbitrator who shall be chairman and the award of a majority of such arbitrators will be final and binding upon the parties. In matters relating to such arbitration not provided for herein, the provisions of the Arbitration Act of the Province of Alberta will apply.

10.02 **DESTRUCTION OF SHOPPING CENTRE**

If during the term of this Lease or any renewal thereof the Shopping Centre shall be damaged or destroyed by hazards against which the Landlord is required to insure under the provisions of this Lease or by any other casualty whatsoever, to an extent such that, according to the estimate of the Landlord, the cost of repairing or rebuilding the Shopping Centre exceeds twenty-five (25%) per cent of the replacement cost of the Shopping Centre (excluding foundations and excavations) then the Landlord may by notice in writing to the Tenant elect either to repair such damage or destruction (including any such demolition and reconstruction as the Landlord's architect may recommend is necessary in the overall interest of the Shopping Centre) or to terminate this Lease.

10.03 **EXPROPRIATION**

(a) If during the term of this Lease, or any renewal thereof, the Shopping Centre shall be acquired or condemned by expropriation for any public or quasi-public use or purpose, then the Landlord and the Tenant may separately claim, receive and retain awards of compensation for loss of their respective interests, but neither the Landlord nor the Tenant shall have any claim against the other in respect of the said loss or any unexpired term of this Lease. In this paragraph the expression "the Shopping Centre shall be acquired or condemned by expropriation for any public or quasi-public use or purpose" shall mean the taking by a competent authority of all or such part or parts of the Shopping Centre by the right or exercise of any power of expropriation as results in the part or parts of the Shopping Centre remaining (if any) being in the reasonable opinion of the Landlord, incapable of repair, reconstruction or alterations so as to be economically useable by the Tenant for the purpose for which the demise to it herein is intended.

(b) If the whole of the common parking area in the Shopping Centre shall be acquired or condemned by expropriation for any public or quasi-public use or purpose, then the term of this Lease shall cease and determine as of the date of title vesting in such proceeding, unless the Landlord shall take immediate steps to provide other parking facilities substantially equal to the previously existing ratio between the common parking areas and the leased premises and such substantially equal parking facilities shall be provided by the Landlord at its own expense within one hundred and twenty (120) days from the date of such acquisition or condemnation. In the event that the Landlord shall provide such other substantially equal parking facilities, then the Tenant shall have no claim against the Landlord for the value of any unexpired term of this Lease.

10.04 **INSURANCE**

(a) **Landlord's Insurance**

The Landlord and the Tenant hereby covenant and agree that the Landlord shall place and maintain:

(i) insurance against fire and other risks as are included in a standard fire and extended coverage contract in an amount equal to the full replacement value (excluding excavations and foundations) of the buildings and equipment of the Shopping Centre; and

(ii) public liability insurance in respect of all common areas of the Shopping Centre with limits of not less than ONE MILLION ($1,000,000.00) DOLLARS for any one occurrence; and

(iii) any other form or forms of insurance as the Landlord reasonably requires from time to time, in amounts and for perils required by the Landlord;

and the cost of all insurance so placed and maintained by the Landlord shall be borne by

the Tenant in accordance with the terms of this Lease. The Tenant shall have no interest in, or right, title or claim to any policy or policies of insurance maintained by the Landlord or any proceeds therefrom. The Landlord shall not be liable to the Tenant in any way if any policies maintained by the Landlord shall prove to be inadequate in any respect.

(b) **Tenant's Insurance**

The Tenant shall place and maintain in amounts and with insurers satisfactory to the Landlord, at the Tenant's sole expense:

(i) insurance on property of every description and kind owned by the Tenant, or for which the Tenant is responsible or legally liable, including without limitation, stock-in-trade, furniture, fittings, installations, alterations, additions, partitions, fixtures and anything in the nature of a leasehold improvement. The perils insured against shall include all risks of direct physical loss or damage (including, without limitation, coverage for sprinkler leakage, earthquake, flood and collapse) and such additional perils as are required by the Landlord from time to time; and

(ii) policies of public liability and property insurance and tenant's legal liability insurance insuring the Landlord and the Tenant against all sums which the Tenant may become obliged to pay as damages by reason of injury to persons or damage to or destruction of property in and upon the leased premises or the Shopping Centre, which at the commencement of this Lease shall not be less than the following limits, namely:

(A)	bodily injury or death of any one person;	$1,000,000.00
(B)	bodily injury or death to any two or more persons in any one accident;	$2,000,000.00
(C)	property damage;	$1,500,000.00

and

(iii) insurance for replacement of all glass and plate glass in the leased premises for damage and breakage from any cause whatsoever; and

(iv) insurance for damages sustained due to burglary of the leased premises; and

(v) any other form or forms of insurance as the Landlord reasonably requires from time to time, in amounts and for perils required by the Landlord;

and the Tenant shall, prior to gaining entry to all or part of the leased premises, deliver to the Landlord Certificates of such insurance or the original or certified copy of such insurance policies. All policies shall waive any right of subrogation against the Landlord.

(c) **Landlord's Responsibility**

The Landlord shall not, except to the extent of the net amount realized by the Landlord from its insurer or insurers as a result of insurance claims, be liable or responsible in any way for:

(i) any personal or consequential injury of any nature whatsoever that may be suffered or sustained by the Tenant or any employee, agent, invitee, licensee or customer of the Tenant or any other person who may be in or upon the Shopping Centre or the leased premises; or

(ii) any loss or damage whatsoever of or to any property belonging to the Tenant or to its employees or to any other person while such property is in or on the Shopping Centre or the leased premises; or

(iii) any loss, damage or injury, whether direct or indirect, to persons or property or loss of income or revenue resulting from any failure, howsoever caused, in the supply of the utilities, services or facilities provided or to be provided or repairs made to or to be made to the leased premises or the Shopping Centre under any of the provisions of this Lease or otherwise.

SECTION 11 - MISCELLANEOUS PROVISIONS

11.01 QUIET POSSESSION

If the Tenant pays the rent hereby reserved and performs the covenants herein on its part contained, it may peaceably possess and enjoy the leased premises for the term herein granted without any interruption or disturbance from the Landlord or any other person or persons lawfully claiming by, from or under it; provided, and it is hereby agreed, that in no event shall the alteration of common areas pursuant to paragraph 3.02 or the conduct of repairs or renovations or redevelopment by the Landlord to the exterior or interior of the Shopping Centre, or the construction of additions to the Shopping Centre constitute a breach of this covenant for quiet enjoyment.

11.02 SIGN RENTAL

11.02.01 The Tenant shall display on the canopy sign attached to the front of the premises an advertisement sign of the Tenant's business in style and colour acceptable to the Landlord and the cost of constructing the fascia and the cost of installation of the fascia shall be borne by the Tenant.

11.02.02 The size of the advertising sign on the canopy sign shall be approximately thirty inches (30") in height and Eighteen feet, Ten inches (18' 10") in length.

11.02.03 The sign shall be free from rent.

11.02.04 The Landlord shall at all times operate, maintain and replace the signs and the lighting under the canopy, but the Tenant shall pay its share of the costs of operating, repairing, maintaining and replacing the signs and the lighting under the canopy in accordance with the following formula:

Length of Tenant's signs Total length of all signs on the sign band	X	Cost of operating, repairing, maintaining and replacing all signs and the lighting under the canopy	=	Tenant's share

11.02.05 In the event that the plastic fascia requires repair or replacement for any reason whatsoever, including the acts of third parties but excluding only the neglect of the Landlord, then the plastic fascia shall be repaired or replaced by the Landlord at the Tenant's expense and cost.

11.02.06 The advertisement signs shall be and remain at all times the property of the Landlord free of any claim or right of the Tenant. Upon termination of this Lease, the Tenant shall have the right to remove the advertisement signs and to destroy them.

11.02.07 The Tenant shall not cause or permit the advertisement signs to be tampered or interfered with or repaired by anyone other than representatives of the Landlord.

11.02.08 The Tenant agrees that if the rights, benefits and obligations hereunder are abandoned, vacated, sold or assigned to a third party with the consent of the Landlord, the Tenant shall pay all costs necessarily incurred by the Landlord to repaint or redesign the signs or any part thereof, which costs shall include all labour and materials at the Landlord's then current rates and any sales or other expenses.

11.03 PYLON SIGN

The Tenant shall be allowed to display signage on the last square of the 97th Street Pylon at a cost of $200.00 per month plus GST payable to the Landlord as additional rent. The style and colour of the Tenant's signage on the pylon sign shall be acceptable to the Landlord and the cost of constructing the fascia and the cost of installation of the fascia shall be borne by the Tenant.

11.04 PLACE OF PAYMENTS

The Tenant shall make all required payments hereunder at the office of the Landlord as provided by paragraph 11.16(a) or at such other place or places as the Landlord may from time to time designate in writing.

11.05 GOVERNMENT REGULATIONS

The Tenant shall abide by all laws, by-laws, legislative and regulatory requirements of any governmental or other competent authority relating to the business conducted on the leased premises and shall save harmless the Landlord from all costs or charges incidental thereto, or damages or penalties by reason of breach thereof.

11.06 FURTHER REGULATIONS

(a) **No Dangerous Articles**

The Tenant shall not store or bring on the premises any articles of an inflammable, combustible or dangerous nature and shall at all times keep the leased premises in such condition as to comply with the regulations and requirements of any appropriate fire underwriter's association and of the fire department of local and competent jurisdiction. The Tenant shall keep and maintain on the leased premises all safety appliances required by the use of the leased premises. The Tenant shall not do or permit to be done or omit or permit to be omitted upon the leased premises anything which shall cause the rate of insurance upon the Shopping Centre, or any part thereof, to be increased or any insurance policy insuring the Shopping Centre or any part thereof or the Landlord or the tenants of the Shopping Centre to be cancelled.

11.07 FINANCING OF THE SHOPPING CENTRE

(a) This Lease and all rights of the Tenant hereunder is and are subordinate and subject to all mortgages or deeds of trust or liens resulting from any method of financing and which may now or at any time hereafter be in force against the land and buildings constituting the leased premises and the Shopping Centre or either of them and this Lease and the rights of the Tenant hereunder will be subordinate to all advances made or to be made upon the security of such mortgages, deeds of trust or liens. This Lease and the rights of the Tenant hereunder shall also be subject and subordinate to any renewal, modification, consolidation, replacement and extension of any such mortgage, deed of trust or lien. The subordination shall be self-operating and no further instrument shall be required. Nevertheless, upon written request of the Landlord the Tenant shall forthwith give further evidence of such subordination by written instrument in such form as the Landlord shall require.

(b) In the event of a bona fide sale or the bona fide raising of funds upon the leased premises or the Shopping Centre by the Landlord, this Lease and the rentals hereunder may be assigned by the Landlord to such bona fide purchaser or lender or trustee for such lender.

(c) Upon assignment of this Lease or of the rentals and other charges payable hereunder to a bona fide lender or trustee and upon notice of such assignment being forwarded to the Tenant, the Tenant agrees within ten (10) days to sign and return to the Landlord such acknowledgment of assignment in the form required by the Landlord.

11.08 VERIFICATION STATEMENTS

The Tenant agrees that it shall at any time and from time to time upon not less than ten (10) days' prior written notice execute and deliver to the Landlord a statement in writing in the form annexed hereto as Schedule "D" certifying that this Lease is unmodified and in full force and effect (or, if modified, stating the modification and that the same is in full force and effect, as modified), the amount of the annual rent then being paid hereunder, the date to which the same (by instalments or otherwise) and other charges hereunder have been paid, and whether or not there is any existing default on the part of the Landlord.

11.09 CAVEAT

The Tenant shall not file a Notice of this Lease or Caveat respecting this Lease in the Land Titles Office in which the leased premises are situate and will not be entitled to file or register this Lease.

11.10 TIME OF ESSENCE

Time shall be of the essence of this Agreement save as herein otherwise specified.

11.11 MODIFICATION

(a) This Lease may not be modified or amended except by an instrument in writing signed by the parties hereto or by their successors or assigns.

(b) If any holder of any mortgage or mortgages or any charge resulting from any other method of financing or refinancing, declaration of trust, debenture issue or any other such method of financing or refinancing now or hereafter in force against the lands and Shopping Centre of which the leased premises are a part shall at any time require any change not of a substantial nature in any of the terms, covenants and provisions of this Lease, the Tenant agrees to the modification of this Lease to comply with the requirements of such party provided always that there is no reduction in the rent or additional rent or other monies to be paid hereunder or any increase in the length of the terms hereby created and that such

requirements do not impose undue burdens upon the Tenant and do not involve alterations of substance in the covenants and agreements herein contained.

11.12 ENTIRE AGREEMENT

This Lease contains the entire agreement between the parties and it is admitted, so that they are forever estopped from asserting to the contrary, that there is no condition precedent or warranty of any nature whatsoever to the within Lease. Delivery of an unsigned copy of this Lease to the Tenant, notwithstanding insertion of all particulars in the Lease and presentation of any cheque or acceptance of any monies by the Landlord given by the Tenant as a deposit does not constitute an offer by the Landlord and no contractual or other legal right shall be created between the parties hereto until this Lease has been fully executed by both parties and delivery has been made of an executed copy of this Lease to the Tenant.

11.13 LANDLORD AND TENANT RELATIONSHIPS

Nothing contained herein shall be deemed or construed by the parties hereto nor by any third party as creating the relationship of principal and agent or of partnership or of joint venture between the parties hereto, it being understood and agreed that neither the method of computation of rent nor any other provision contained herein nor any acts of the parties hereto shall be deemed to create any relationship between the parties hereto other than the relationship of Landlord and Tenant.

11.14 NOTICE OF LETTING AND INSPECTION BY PROSPECTIVE TENANTS

At any time within one hundred and eighty (180) days prior to the expiry or sooner determination of this Lease:

(a) The Landlord may place upon the leased premises a notice that the leased premises are for rent and the Tenant shall not remove or obscure such notice or permit the same to be removed or obscured;

(b) Any prospective tenant or its representative may inspect the leased premises and all parts thereof at all reasonable hours, if accompanied by the Landlord or its agent or agents, or unaccompanied on production of a written order signed by the Landlord or its agent or agents.

11.15 RULES AND REGULATIONS

The Tenant shall observe such rules and regulations as the Landlord may from time to time make for the operation, reputation, safe care or cleanliness of the Shopping Centre and the leased premises, the operation and maintenance of equipment, the use of common areas and facilities, the hours of business, parking areas for vehicles operated by the Tenant and its employees, the display of merchandise, merchandising in general, the lighting of premises, the display of signs visible outside the leased premises and other matters affecting the operation of the Shopping Centre, including, but not to be restricted to, those Rules and Regulations attached hereto as Schedule "E", provided such rules and regulations are reasonable and consistent with the provisions of this Lease.

11.16 NOTICES

(a) Any notices herein provided or permitted to be given by the Tenant to the Landlord shall be sufficiently given if mailed by registered mail, postage prepaid, addressed to the Landlord at:

13620 - 97 Street
EDMONTON, Alberta T5E 4E2

(b) In every instance where it is necessary or desirable for the Landlord to serve any notice or demand upon the Tenant it will be sufficient:

(i) to deliver or cause to be delivered to the Tenant at the leased premises a written or printed copy thereof; or

(ii) to forward a written or printed copy thereof by registered mail, postage prepaid, addressed to the Tenant at:

13540 - 97 Street
EDMONTON, Alberta T5E 4E2

(iii) to leave a written or printed copy thereof in or upon the leased premises or to affix the same upon any door leading into the leased premises.

All notices or demands to the Tenant shall be signed by the Landlord or its agent or agents on its behalf and will be conclusively deemed to have been given on the day on which such notice is delivered, left or affixed, or on the next business day (other than a Saturday) following the day on which notice is mailed, as the case may be.

(c) Either party may at any time in the manner provided above give notice in writing to the other of any change of address of the party giving such notice and from and after the giving of such notice the address therein specified shall be deemed to be the address of such party for the giving of notices hereunder.

11.17 **AGENT**

The Landlord may perform all or any of its obligations by or through such managing or other agency or agencies as it may from time to time determine and the Tenant shall, as from time to time directed by the Landlord, pay to any such agent any monies payable hereunder to the Landlord.

11.18 **CAPTIONS**

The captions in this Lease form no part of this Lease and shall be deemed to have been inserted for convenience only.

11.19 **GRAMMATICAL**

The word "Tenant" shall be deemed and taken to mean each and every person or party mentioned as a tenant herein; and if there shall be one or more person or party, any notice required or permitted by the terms of this Lease may be given by or to any one thereof and shall hold the same force and effect as if given by or to all thereof. The use of the neuter singular pronoun to refer to the Landlord or the Tenant shall be deemed a proper reference even though the Landlord or Tenant may be individual, partnership, corporation or a group of two or more individuals or corporations. The necessary grammatical changes required to make the provisions of this Lease apply in the plural sense where there is more than one Landlord or Tenant and to either corporations, associations, partnerships or individuals, males or females, shall in all instances be assumed as though in each case fully expressed.

11.20 **NATURE OF CHARGES IN LEASE**

All sums required to be paid by the Tenant under this Lease shall be deemed to be additional rent and shall be collectible by the Landlord as rent.

11.21 **TERMS, COVENANTS AND CONDITIONS INVALID**

If any term, covenant or condition of this Lease or the application thereof to any person or circumstances shall, to any extent be invalid or unenforceable, the remainder of this Lease or application of such term, covenant or condition to persons or circumstances other than those as to which it is held invalid or unenforceable, shall not be affected thereby and each term, covenant or condition of this Lease shall be valid and shall be enforceable to the fullest extent permitted by law.

11.22 **STRIKES, LOCK-OUTS, ETC.**

Notwithstanding anything herein to the contrary, the Landlord shall not be deemed in default with respect to the performance of any of the terms, covenants and conditions of this Lease if the same shall be due to any strike, lock-out, civil commotion, war-like operation, invasion, rebellion, hostilities, military or usurped power, sabotage, governmental regulations or controls, acts of God, inability to obtain any materials, services or financing, or otherwise beyond the control of the Landlord and the Tenant shall not be entitled to compensation for any inconvenience, nuisance or discomfort thereby occasioned.

11.23 **JOINT AND SEVERAL**

In the case where this Lease is executed by more than one person or party, all covenants, conditions and agreements herein contained shall be construed as taken as against all executing parties as joint and several.

11.24 **LANDLORD'S PERFORMANCE ON TENANT'S BEHALF**

If the Tenant shall fail to perform any of the covenants and obligations of the Tenant under or in respect of this Lease, the Landlord may from time to time, in its discretion, perform or cause to be performed any of such covenants or obligations, or any part thereof, and for such purpose may do such things as may be requisite including, without limiting the foregoing, enter upon the leased premises and do such things upon or in respect of the demised premises or any part thereof as the Landlord may consider requisite or necessary. All expenses incurred and expenditures made by or on behalf of the Landlord under this paragraph shall be forthwith paid by the Tenant and if not paid shall bear interest at eighteen (18%) per cent

per annum from the date the same were incurred or made.

11.25 **SALE OR ASSIGNMENT OF SHOPPING CENTRE**

In the event of a sale by the Landlord of its interest in the Shopping Centre or any undivided interest therein (hereinafter referred to as "fee simple"), or in the event of the making of a lease of part or all of the Shopping Centre (hereinafter referred to as "the Centre Lease"), or in the event of a sale or transfer of the leasehold estate under any such Centre Lease, the grantor, transferor, fee lessee or Centre Lessor, as the case may be, shall thereafter be entirely relieved of all terms, covenants and obligations thereafter to be performed by the Landlord under this Lease, to the extent of the interest or portion so sold, transferred or leased, and it shall be deemed and construed without further agreement between the parties and the purchaser or transferee on any such sale or transfer, or the new fee lessee or new Centre Lessor, as the case may be, that the said purchaser, transferee, new fee lessee or new Centre Lessor, as the case may be, has assumed and agreed to carry out any and all covenants of the Landlord hereunder; provided that:

(a) Any amount then due and payable to the Tenant for which the Landlord or the then grantor, transferor, fee lessee or Centre Lessor would otherwise then be liable to pay to the Tenant (it being understood that the owner of an undivided interest in the fee or any such lease shall be liable only for his proportionate share of such amount) shall be paid to the Tenant;

(b) The interest of the grantor, transferor, fee lessee or Centre Lessor, as Landlord, in any funds then in the hands of the Landlord or the then grantor, transferor, fee lessee or Centre Lessor in which the Tenant has an interest shall be turned over, subject to such interest, to the then grantee, transferee, new Centre Lessor or new fee lessee; and

(c) Notice of such sale, transfer or lease shall be delivered to the Tenant.

11.26 **CONFIDENTIAL NATURE OF LEASE**

The Tenant hereby agrees that this Lease is a confidential document and that it shall make no use of this Lease or any provision hereof or information delivered to the Tenant except in connection with the tenancy created hereunder.

11.27 **SCHEDULES**

All schedules attached to and forming part of this Lease shall be read as part of this Lease.

11.28 **SUCCESSORS AND ASSIGNS**

Save as herein otherwise provided, this Indenture of Lease will be binding upon and enure to the benefit of the Landlord and the Tenant and their respective heirs, executors, administrators, successors and assigns.

WHEREFORE the parties have executed these presents under seal and by the hand of their appointed officers as of the day and year first above written.

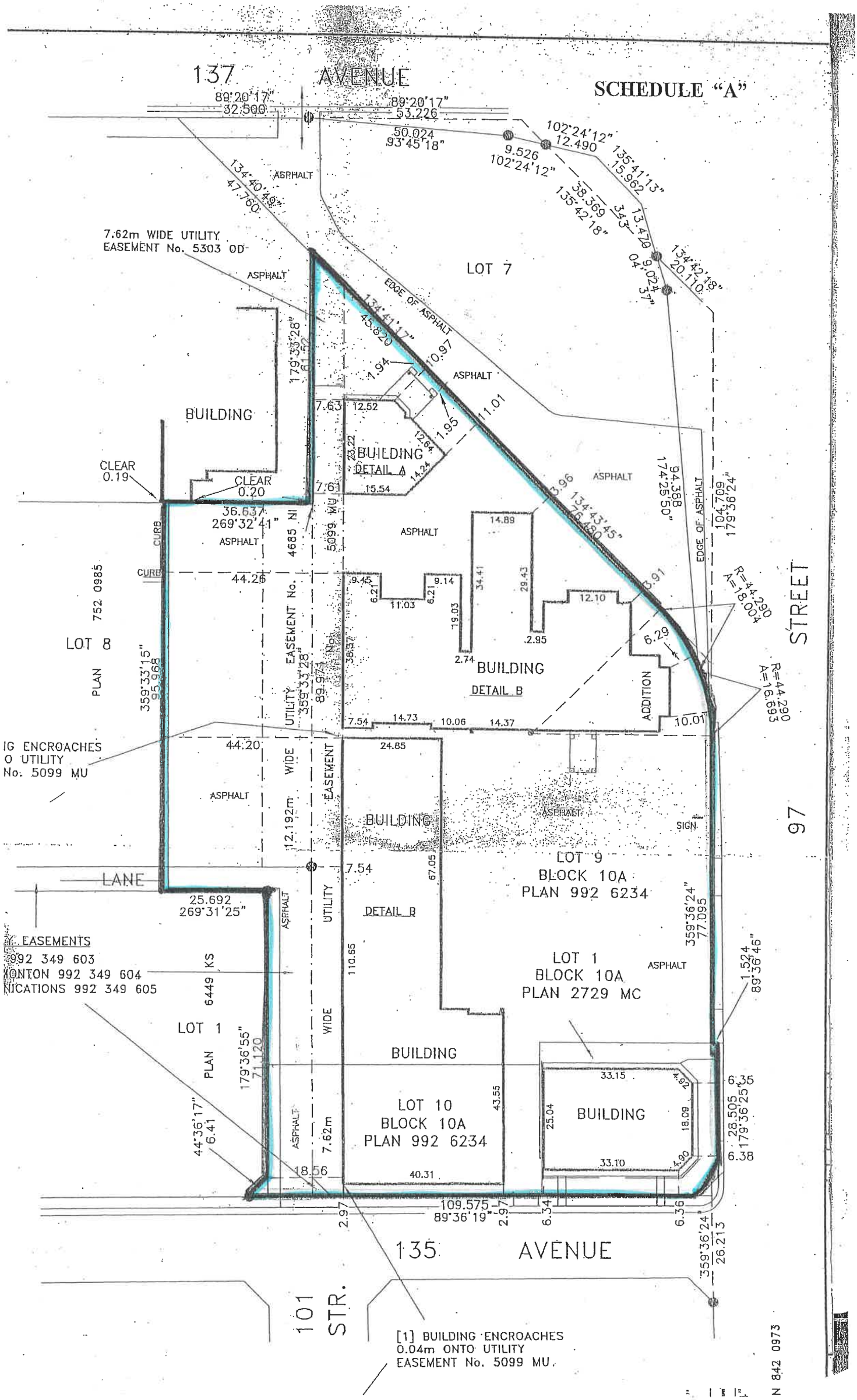
ROSSLYN INN & SUITES LTD.

Per: _____

Per: _____

CLINIC SOLUTIONS INC.

Per: _____

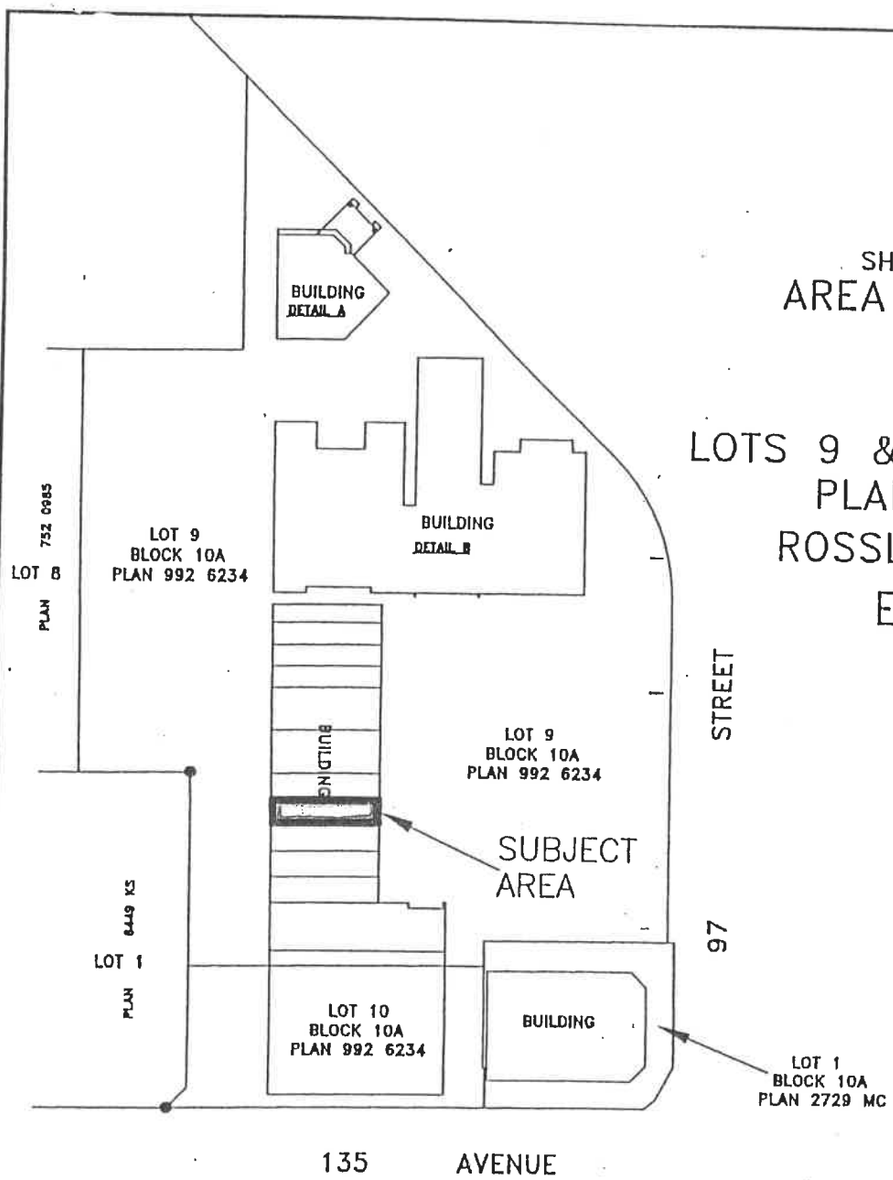

SCHEDULE "A"
137 AVENUE
89°20'17"
32.500
89°20'17"
53.226
50.024
93°45'18"
9.526
102°24'12"
102°24'12"
12.490
135°41'13"
15.962
134°40'49"
47.760
ASPHALT
7.62m WIDE UTILITY
EASEMENT No. 5303 OD
LOT 7
EDGE OF ASPHALT
134°41'17"
45.820
10.97
1.94
1.95
11.01
179°33'28"
61.52
BUILDING
7.63
12.52
12.64
14.24
23.22
BUILDING
DETAIL A
15.54
7.61
CLEAR
0.19
CLEAR
0.20
36.637
269°32'41"
4685 NI
5099 MU
CURB
752 0985
LOT 8
PLAN
359°33'15"
95.968
44.26
EASEMENT No.
UTILITY
359°33'28"
89.971
38.37
9.45
6.21
11.03
6.21
9.14
19.03
34.41
29.43
14.89
2.74
2.95
12.10
BUILDING
DETAIL B
ADDITION
3.96
134°43'45"
76.480
3.91
6.29
R=44.290
A=18.004
R=44.290
A=16.693
STREET
97
7.54
14.73
10.06
14.37
10.01
IG ENCROACHES
O UTILITY
No. 5099 MU
44.20
24.85
WIDE
EASEMENT
12.192m
BUILDING
SIGN
LANE
7.54
67.05
LOT 9
BLOCK 10A
PLAN 992 6234
25.692
269°31'25"
UTILITY
DETAIL B
359°36'24"
77.095
Y. EASEMENTS
992 349 603
ONTON 992 349 604
NICATIONS 992 349 605
110.65
LOT 1
BLOCK 10A
PLAN 2729 MC
1.524
89°36'46"
6449 KS
LOT 1
PLAN
179°36'55"
71.120
WIDE
BUILDING
33.15
4.90
6.35
43.55
LOT 10
BLOCK 10A
PLAN 992 6234
25.04
BUILDING
18.09
28.505
179°36'25"
44°36'17"
6.41
7.62m
18.56
40.31
33.10
4.90
6.38
109.575
89°36'19"
2.97
2.97
6.34
6.36
135 AVENUE
359°36'24"
26.213
101 STR.
[1] BUILDING ENCROACHES
0.04m ONTO UTILITY
EASEMENT No. 5099 MU.
N 842 0973

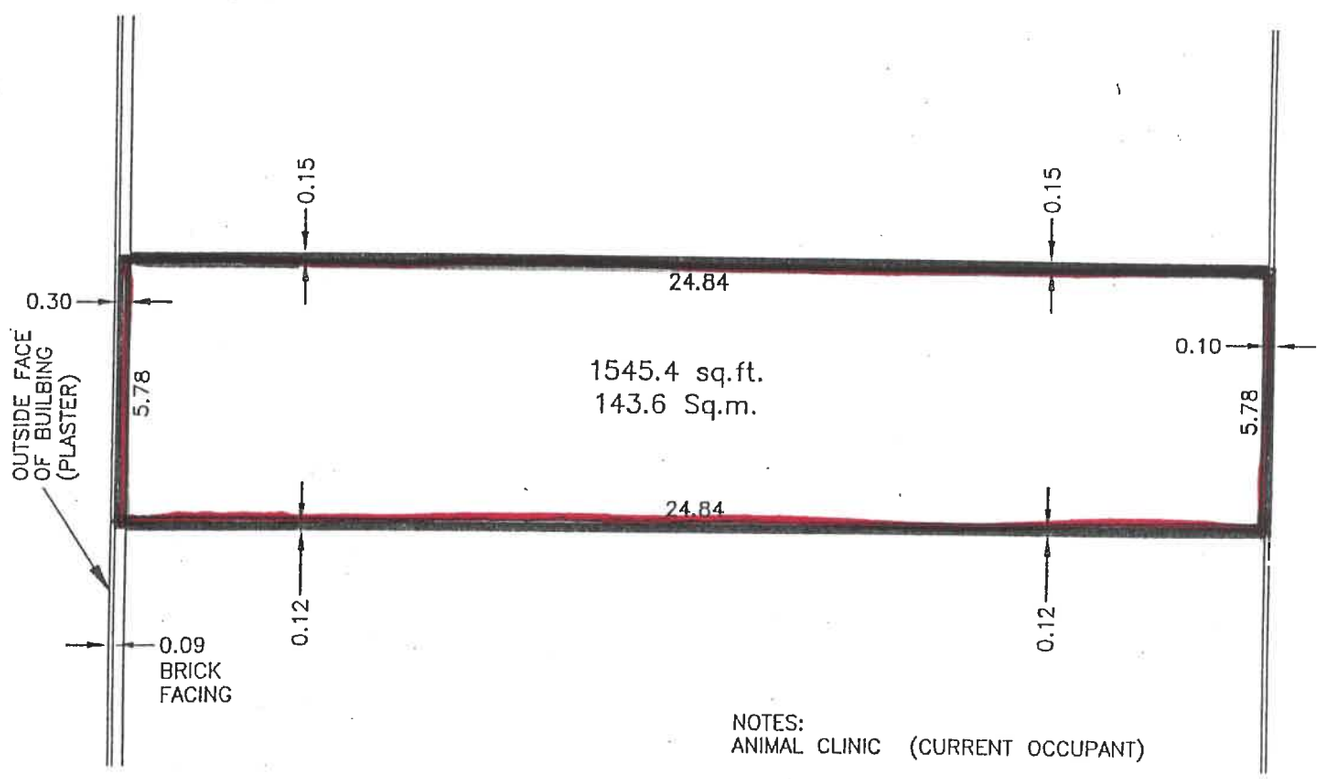
SCHEDULE "B"

1093-11 MTK
PLAN A

PLAN
SHOWING SURVEY OF
AREA TO BE LEASED
WITHIN
BUILDING
ON
LOTS 9 & 10 – BLOCK 10A
PLAN 992 6234
ROSSLYN MOTOR INN
EDMONTON
ALBERTA

SCALE 1:150





NOTES:
ANIMAL CLINIC (CURRENT OCCUPANT)

DISTANCES SHOWN ARE TO THE CENTRE OF THE NORTH & SOUTH WALL, AND TO THE OUTSIDE FACE OF EAST & WEST WALL
OUTSIDE BRICK FACING NOT INCLUDED.
ALL DISTANCES ARE IN METRES AND DECIMALS THEREOF.
SURVEYED JANUARY 16, 2002

ALBERTA LAND SURVEYORS' ASSOCIATION
PERMIT NUMBER
P 047
GILLMORE SURVEYS (ARCTIC) LTD.

CERTIFIED CORRECT
JANUARY 28, 2002

Duncan C. Gillmore

GILLMORE SURVEYS (ARCTIC) LTD.
7322 – 101 AVENUE
EDMONTON – ALBERTA
T6A 0J2
PH. (780) 465-0096 fAX (780) 468-7072

SCHEDULE "C" to the Lease between **ROSSLYN INN & SUITES LTD.** as Landlord and **CLINIC SOLUTIONS INC.** as Tenant.

F O R M O N L Y

TENANT'S ESTOPPEL CERTIFICATE

THE UNDERSIGNED, the Tenant referred to in the Lease dated the ____ day of _____, A.D. 20___ made between **ROSSLYN INN & SUITES LTD.** as Landlord and **CLINIC SOLUTIONS INC.** as Tenant, certifies to **ROSSLYN INN & SUITES LTD.** that:

1. The Tenant's obligation to pay rent pursuant to the Lease commenced on the ____ day of _____, A.D. 20___.

2. The minimum rent reserved pursuant to the Lease is _____ _____ ($_____) DOLLARS per annum, being _____ ($_____) DOLLARS per month.

3. The Tenant is paying minimum rent and all other charges pursuant to the said Lease.

4. The Landlord has been paid the sum of _____ _____($_____) DOLLARS to be applied to the minimum rent due for the last ____ month(s) of the term and that there is no interest accruing on the said deposit.

5. Other than in paragraph 4 above, no rents have been paid in advance.

6. The Tenant is in possession of the leased premises.

7. There have been no changes relevant to the Lease in either Schedule "A" or Schedule "B" to the said Lease.

8. The leased premises, measured having reference to the American Standard of Measurement, actually comprise an area of _____ (_____) square feet.

9. The Lease dated the ____ day of _____, A.D. 20___ comprises the entire agreement between the Landlord and the Tenant and there are no other agreements or representations, either verbal or written. The Lease is unmodified and in full force and effect.

10. The Landlord is not in default in performance of any of its covenants, agreements or conditions contained in the Lease or its schedules and the undersigned Tenant has no claims, set-offs or counter-claims against the Landlord.

DATED at the City of Edmonton, in the Province of Alberta, this ___ day of _____, A.D. 20___.

"FORM ONLY"

_____

SCHEDULE "D" to the Lease between **ROSSLYN INN & SUITES LTD.** as Landlord and **CLINIC SOLUTIONS INC.** as Tenant.

RULES AND REGULATIONS REFERRED TO IN PARAGRAPH 11.15

1. The Tenant shall at all times abide by all laws, rules, regulations, ordinances, provisions and requirements relating to the Shopping Centre or to the leased premises and shall keep the leased premises, its employees, servants, agents and invitees under its control so as to prevent the performance of any act or the carrying on of any practice which would damage the Shopping Centre or its reputation or the leased premises or could injure or annoy the other tenants in the Shopping Centre.

2. The Tenant shall not burn any trash or garbage in or about the leased premises or anywhere within the confines of the said Shopping Centre. All garbage, trash and rubbish shall be kept within the interior of the premises until the day of removal. Such removal shall be at the expense of the Tenant on a regular basis as described by the Landlord. If the Tenant's trash or garbage is of a deteriorating nature, creating offensive odors, then the Tenant shall provide and maintain at its sole cost and expense sealed, refrigerated garbage rooms. In the event that it is considered necessary by the Landlord that such garbage be placed outside the leased premises and the Landlord consents in writing to the placing of garbage outside the leased premises, then such garbage shall be placed in a container specified by the Landlord but provided at the sole cost and expense of the Tenant.

3. The Landlord shall designate the service to be used for the collecting and removing of refuse and garbage, the cost thereof to be an occupancy cost pursuant to Section 6 of the annexed Lease.

4. The Tenant shall not keep or display any merchandise on or otherwise obstruct the sidewalks, malls (if any) or other areas adjacent to the leased premises.

5. The Tenant shall not overload any floor of the leased premises in excess of ONE HUNDRED (100) pounds per square foot, nor shall it hang or suspend from any wall or ceiling or roof or any other part of the Shopping Centre any equipment, displays, fixtures or signs which are not authorized by the Landlord or its architects.

6. The Tenant shall at all times keep the leased premises in a clean and sanitary condition, including the inside and outside of all glass, the doors and windows of the premises, together with all exterior store front surfaces of the leased premises, in accordance with the laws and directions, rules and regulations of any governmental, municipal or other agency having jurisdiction. The Tenant shall not place or permit to be placed any obstructions or merchandise on, in or near any sidewalks, rear entrances, service corridors or loading areas. The Tenant agrees to remove all merchandise from the loading area immediately upon such merchandise being delivered.

7. Throughout the term of the Lease the Tenant shall at its sole cost and expense maintain all store fixtures and maintain and relamp all lighting fixtures. If the Tenant requires any electrical equipment which will overload the electrical facilities in the leased premises, the Tenant shall first submit to the Landlord plans and specifications for the work required to install and supply additional electrical equipment necessary to prevent overloading of the electrical facilities in the leased premises and obtain from the Landlord written approval to perform the same. All such work shall meet all government regulations, regulations of any other competent authority, regulations of the Association of Insurance Underwriters and requirements as set down by the Landlord's insurers and shall be at the sole cost and expense of the Tenant and shall be in strict accordance with Section 7 of the annexed Lease.

8. The Tenant shall keep all interior windows, store fronts, windows facing the enclosed malls (if any) and signs well lighted until 10:00 o'clock in the evening each day except Sunday, or to such other times as required by the Landlord.

9. The Tenant and Tenant's employees and agents shall not solicit business in the parking area or other common areas nor shall a Tenant distribute any handbills or other advertising material in the parking area or other common areas.

10. All loading and unloading of merchandise, supplies, fixtures, equipment and furniture shall be made at such hours and in accordance with such further rules as the Landlord may prescribe. If the leased premises have a rear service door leading to a common truck receiving area, all loading and unloading of merchandise, supplies, fixtures, equipment and furniture shall only be made through the rear access.

11. The Tenant shall not use or permit the use of any objectionable advertising medium such as, without limitation, loudspeakers, phonographs, televisions, public address systems, sound amplifiers, radio or broadcasting within the Shopping Centre which is in any way audible or visible outside the leased premises. No aerial shall be erected on the roof or exterior walls of the leased premises or on the ground without in each instance the written consent of the Landlord. Any aerial installed without such written consent shall be subject to removal without notice at any time.

12. The plumbing facilities shall not be used for any other purpose than that for which they were constructed and no foreign substance of any kind shall be thrown therein and the expense of any breakage, stoppage or damage resulting from the violation of this provision shall be borne by the Tenant whose employees, agents or invitees shall have caused it.

13. From and after the official opening date of the Shopping Centre the Tenant shall open and keep the leased premises open for business at such times as the Landlord may in writing designate.

14. The Tenant and its employees, servants, agents and contractors may enter the leased premises at all times outside regular business hours, but only by such entrances as the Landlord may designate from time to time and subject to such means as the Landlord may require to control the presence of persons within the Shopping Centre when it is closed to the public.

15. The Tenant shall use at its sole cost and expense such pest extermination contractor as may from time to time be designated by the Landlord and at such intervals as the Landlord may deem necessary.

16. The Tenant shall erect within the leased premises at a place readily visible and prominent to staff members and employees working within the leased premises a bulletin board and shall post thereon all rules and regulations of the Shopping Centre from time to time received by the Tenant, including without restriction thereof, these rules and regulations; and

17. For the benefit and welfare of all Tenants of all the premises of the Shopping Centre, as it may exist from time to time, the Landlord shall have the right to issue further reasonable rules and regulations and such further rules and regulations shall thereupon be binding upon the Tenants. The Tenant agrees to comply with all rules and regulations on notice to the Tenant from the Landlord.